ELLI NY DESIGN

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TRANSMITTAL

PROJECT: JFK NTO Turkish Airlines | **Contract Comments**
GC: VRH Construction.
DATE: 3/10/2026

Terms & Conditions:

1. ~~**Article #3** (pg. 3) – Taxes are NIC.~~ → Removed
2. **Article #4.3** (pg. 4) – Request to have retainage at 10% until 50% of project completion, then full reduction to 5%.
3. ~~**Article #6.3** (pg. 7) – Change Orders: Request to increase total cap of O&P to 15%~~ → Removed
4. **Article #7** (pg. 8) – Bonds are NIC.
5. **Article 11.3** (pg. 11) – Crossed out this article: Delays & Damages by others.
6. **Article #13.2** (pg. 13) – Specified Centerpile for Rubbish removal.

Scope of Work

- ~~Item #18: Taxes NIC~~ → Removed
- Line #31: Specified Centerpile for Rubbish removal.
- Line #16 & 19 – N/A to scope.
- Line #17: No BIM usage.
- Line #34: Columns - Specified quantity of veneer columns since there are other column types.
- Line #35: same as above.
- Line #35: Columns - GRFG, Framing & Gyp board by others. No Alternate from Elli.
- Line #39 – Wood Base - Specified room locations.
- Line #40: Arrival Desk - Listed exclusions as this is noted as "complete".
- Line #41: Scotch Bar - Listed exclusions as this is noted as "complete".
- Line #42: Steel Canopy – Listed exclusions.
- Line #44: Show Kitchen – Specified room name and number. Listed extent of scope as this is noted as "complete".
- Line #45: Vanity – Specified exclusions.
- Line #46: Urinal Screens – These are NIC. By others.
- Line #47: Custom Mirror Cabinets: Specified quantities since there are other custom mirrors throughout, by others.
- Line #48: Buffets – Specified exclusions since this is noted as "complete".
- Line #49: Working Desks & Bench: Specified locations & noted exclusion of paneling.
- Line #50: Custom Locker – Listed exclusions.
- Line #51: Pony Walls – Specified materials that were qualified at time of award due to lack of design/info.
- Line #52: Make Up Units – Listed exclusions.
- Line #53: Shoe Cabinets – Listed exclusions.
- Additional Comments: Summarized all project specific exclusions for clarity.

VRH Construction
320 Grand Avenue
Englewood, NJ 07631-4355
T 201.871.4422

SUBCONTRACT

Subcontract No.	4861-007S	Date:	12/30/2025
Subcontractor:	Elli NY Design Corp.	Project:	Turkish Airlines CIP Lounge T1
	50-01 Metropolitan Ave.		JFK
	Ridgewood, NY 11385	CSI Code:	06400000 Architectural Woodwork
Attention:	Estimating Estimating	Phone:	(718)418-9002

Description of Work

The Subcontractor, as an independent contractor, shall perform the work and provide all labor, materials, plant, equipment, services, transportation, parking facilities, tools, supervision and coordination required to perform fully the following portions of the Prime Contract in accordance with all Terms and Conditions of the Subcontract, attached hereto, the Prime Contract and all other Contract Documents as hereinafter defined the "Subcontract Work".

Provide all necessary labor, material, equipment and supervision for a complete installation of all work in accordance with the attached Scope Review Check-list (Exhibit A) and Document Log or as described below:

Furnish and install all Millwork scope of work as per construction documents and as detailed in the trade detail scope of work attached. All work to be in accordance with drawings, specifications and tenant construction manual.

CONFORMS TO VRH INSURANCE REQUIREMENTS
J.T.

Markups Reviewed & Approved by FH & KC

Subject to the terms stated, the Contractor agrees to pay the Subcontractor for the performance and completion of the Subcontract Work and all of the duties, obligations and responsibilities of the Subcontractor under this Subcontract and the other Contract Documents. The amount indicated below (hereinafter "The Price") subject to the additions and deductions as herinafter provided.

Pencil Requisitions for partial payment must be emailed to the VRH Project Manager by the 25th of each month. A finalized version along with all forms required by the Contract Documents must be emailed to the VRH Project Accountant after approval of the pencil requisition.

Subcontract Amount **$1,118,850.00 Dollars**

Subcontractor: Elli NY Design Corp.	**VRH CONSTRUCTION**
Signed:	Signed:
By: Lissette Olivo	By: Kevin M. Curran
Title: Chief Executive Officer	Title: Project Manager
Date: 03/24/2026	Date: 3/25/26

TERMS AND CONDITIONS OF SUBCONTRACT – PA (NY)

ARTICLE 1
The Contract Documents

1.1 The Contract Documents. The Contract Documents for this Subcontract consist of (a) this Subcontract and any exhibits and schedules attached hereto and (b) the Prime Contract between the Owner and the Contractor. To the extent applicable to the Subcontract Work, the Prime Contract is expressly made part of this Subcontract, including, without limitation, any and all conditions (general, special, or supplementary) thereto, drawings, specifications, addenda, and all modifications made prior to the date of this Subcontract. Each document is available for examination by the Subcontractor at all reasonable times at the office of the Contractor.

ARTICLE 2
The Subcontract Work

2.1 Obligations Assumed by the Subcontractor.

(a) With respect to those portions of the Prime Contract being performed by it, Subcontractor assumes all of the obligations of the Contractor to the Owner under the Prime Contract and is bound to the Contractor to the same extent and upon the same terms and conditions that the Contractor is bound to the Owner under the Contract Documents.

(b) All work not expressly required but reasonably inferred as being necessary to produce the intended result shall also be performed by the Subcontractor without increase in the Price. In the event that portions of the Contract Documents are inconsistent, the provision imposing the most stringent requirement (e.g., the highest quality, the greatest quantity) shall control.

(c) The Subcontractor represents that it has carefully examined and understands this Subcontract and the other Contract Documents, has investigated the nature, locality and the site and the conditions and difficulties under which the Subcontract Work is to be performed and that it enters into this Subcontract on the basis of its own examination, investigation and evaluation of all such matters and not in reliance upon any opinions or representations of the Contractor, or the Owner, or any of their respective officers, agents, servants or employees.

2.2 Review of Drawings, Specifications and Other Documents; Consultation with Contractor. Without limiting the generality of the foregoing paragraph 2.1, the Subcontractor shall (a) promptly review all drawings delivered to the Subcontractor and advise Contractor of any errors and/or omissions of which Subcontractor becomes aware, and (b) upon request from the Contractor, review, advise and consult with Contractor, Owner, and Architect with respect to drawings, specifications, budgets, estimates and schedules as they relate to the Subcontract Work and use its best efforts to provide Contractor, Owner, and Architect with information available to Subcontractor concerning costs, availability of materials and equipment, alternative systems and components and other pertinent information which may be of value to the Owner and Architect in determining the final scope of the architectural, structural, mechanical, electrical and civil work.

2.3 Subcontractor to Replace Damaged or Defective Work. The Subcontractor shall, within twenty four (24) hours after receiving written notice from Contractor of any defective or damaged Subcontract Work, proceed to take down and/or repair all portions of the Subcontract Work and remove from the premises all materials whether worked or unworked which the Architect or the Contractor shall condemn as unsound, defective or improper or as in any way failing to conform to this Subcontract or the Contract Documents and the Subcontractor at its own cost and expense shall replace the same with proper and satisfactory work and materials and make good all Subcontract Work damaged or destroyed by or as a result of such unsound, damaged, defective, improper or non-conforming work or materials or by the taking down, removal and replacement thereof.

2.4 Record Documents. The Subcontractor shall at all times maintain one record set of the applicable Contract Documents in good order and marked currently to record all changes made during construction and the accurate as-built location of the Subcontract Work. A record set of applicable Contract Documents shall be promptly delivered to the Contractor upon completion of the Subcontract Work. The Subcontractor shall at all times fully cooperate with the Contractor, the Owner and the Architect with respect to the preparation of accurate as-built drawings for the Project.

2.5 Right of the Owner and Others to Inspect and Test.

(a) The Owner, Architect, Contractor and the Port Authority of New York and New Jersey ("the Port Authority") and/or other state or federal agency having jurisdiction, shall at all times have the right, through their respective representatives, to inspect the Subcontract Work and, from time to time, in their discretion, to take samples from and perform testing on any part of the Subcontract Work.

(b) Inspection and/or testing shall not constitute acceptance of Subcontract Work failing to conform to the drawings and specifications and other Contract Documents and shall not relieve the Subcontractor of any of its obligations under the Contract Documents.

2.6 Airport Security.

(a) In the event that the Subcontractor requires access to any airport security area, the Subcontractor shall comply with (i) all provisions of the Prime Contract relating to airport security, (ii) all applicable written airport policy statements, (iii) all applicable federal, state and local laws, executive orders, rules and regulations (including, without limitations, those relating to background investigations of employees) and (iv) all requirements of the Port Authority and/or any other agency having jurisdiction.

(b) The Contractor, Owner, Architect, Port Authority and/or any other local, state or federal agency having jurisdiction over the Project, shall have the right, but not the duty, to conduct any and all audits of the Subcontractor's records, including employment records, as it may desire to ascertain and confirm the Subcontractor's compliance with all requirements, policies, laws, executive orders, rules and regulations as required by the Owner and/or the Contract Documents. The Subcontractor shall retain all records required for the length of time required by the Contract Documents.

ARTICLE 3
The Subcontract Price

3.1 Taxes Included Within Price. The Price includes all Federal, State, County, Municipal and other taxes imposed by law, based upon labor, services, materials, equipment or other items acquired, performed, furnished or used by or levied or assessed with respect to the Subcontract Work.

3.2 Cost Plus Fee Computation. In the event that the Price is computed on a "Cost Plus Fee" basis, (a) reimbursable costs shall be only those costs expressly allowed by the Prime Contract and shall exclude all those costs excluded by the Prime Contract, and (b) when the drawings and specifications for the Subcontract Work have reached a stage of completion such that a guaranteed maximum price can be established for the Subcontract Work, the Contractor and Subcontractor shall meet to discuss in good faith the establishment of a guaranteed maximum price.

3.3 The Manner of Payment. The Price, as adjusted by change orders, shall be paid in accordance with Article 4 of this Subcontract.

ARTICLE 4
Progress Payments

4.1 Form of Subcontractor's Applications for Payment.

(a) Prior to commencing the Subcontract Work (or earlier if required by the Contractor), the Subcontractor shall submit to the Contractor (i) a schedule of values of the various parts of the Subcontract Work using the Construction Specification Institute Code (CSI Code), (ii) a schedule of unit prices, if any, agreed upon by Contractor and Subcontractor, and (iii) the Subcontractor's current labor rates as established by applicable collective bargaining agreements. The schedule of values, when approved by the Contractor, Architect and Owner and any applicable schedule of unit prices, shall be the basis for the Subcontractor's applications for payment under the Subcontract. Each of the Subcontractor's applications shall (1) be on such form as is prescribed by the Prime Contract (or is otherwise acceptable to the Owner), (2) use the approved schedule of values and/or unit prices, and (3) state the Subcontractor's estimate of the percentage, or measurement of the units of work satisfactorily completed with respect to each item of the schedule.

(b) In the event that the Subcontractor is being paid on a "Cost Plus a Fee" basis, the Subcontractor shall provide documentation reasonably satisfactory to the Contractor, Owner and Architect to (i) support wages, salaries, material costs, and all other items included in the cost of the Subcontract Work, and (ii) verify actual payment of such costs and charges.

(c) As a condition precedent to its entitlement to receive payment, the Subcontractor shall submit along with each application for payment; (i) all documents necessary to enable the Contractor to receive payment for the Subcontract Work from the Owner (ii) a properly completed Monthly Employment Utilization Report and MWBE/Local Subcontractor Participation Form as supplied by Contractor and (iii) an Affidavit of Payment, Waiver of Lien and/or Release on a form furnished by the Contractor. Subcontractor shall certify that there is no known mechanic's or materialman's lien outstanding with respect to the Subcontract Work, that all due and payable bills with respect to the Subcontract Work have been paid to date or are included in the amount requested in the current application, and shall be paid from the proceeds of the current progress payment and that except for such bills, there is no known basis for the filing of any mechanic's or materialman's lien with respect to the Subcontract Work and that with respect to the Subcontractor's subcontractors and materialmen who have received payment, waivers have been obtained in such form as to constitute an effective wavier of lien under the laws of the state in which the Project is located.

(d) Requisition for payment for stored material, if permitted by the Contract Documents, shall be the actual and verifiable cost to the Subcontractor (exclusive of overhead and profit) and shall be supported by invoices from the vendor to the Subcontractor correlated with the proper line item of the Schedule of Values. Requisitions for materials stored off site, if permitted by the Contract Documents, must also be accompanied by insurance certificates naming Contractor as the sole insured and providing full replacement value coverage for the materials against all perils. All payment requisitions for stored material, on and off the premises, must be accompanied by a Bill of Sale and a sworn notarized statement of the Subcontractor that the materials are for installation in the Project only, that the materials strictly comply with the requirements of this Subcontract, and that the materials have been segregated and shall be labeled as property of Contractor, upon payment therefore. Unless otherwise specified, a retainage of twenty five (25%) percent will be withheld from payment for stored materials.

4.2 Time for Submitting Subcontractor's Applications for Payment. After commencing the Subcontract Work, the Subcontractor shall submit applications for payment monthly, in a form acceptable to the Contractor, covering work performed in the calendar month. The Subcontractor shall submit its applications for payment in a timely manner so that the Subcontractor's applications may be included in the Contractor's applications to the Owner for payment and, in any event, no later than the twenty-fifth (25th) day of the month for which payment is sought (anticipating progress to the end of the month). Invoices received after the twenty-fifth (25th) of the month cannot be included in the Contractor's invoice to the Owner and therefore, will not be recognized as received until the twenty-fifth (25th) of the following month.

4.3 Time and Amount of Payments to Subcontractor. The Contractor shall make progress payments to the Subcontractor for the Subcontract Work actually performed and approved by the Owner for payment. Payment by the Contractor to the Subcontractor shall be made only after and to the extent that the Contractor receives payment for the Subcontract Work from the Owner. Such payment shall be made within two (2) weeks after Contractor's receipt of payment from the Owner. Retainage of ten (10%) percent shall be withheld from all payments to the Subcontractor. If, however, the Owner retains less than ten (10%) percent from its payments to the Contractor on account of the Subcontractor's Work, then the Contractor may, in its discretion, and provided that the Subcontractor has performed fully and completely all terms and conditions of this Subcontract and the Contract Documents, retain from the Subcontractor the same percentage from its payments to the Subcontractor as the Owner is retaining from the Contractor on account of the Subcontractor's Work. Approval of applications for payment, and progress payments, shall not be an acceptance of materials, equipment or work which do not comply with the requirements of the Contract Documents. Amounts approved for payment, and paid, shall nonetheless remain subject to revision at a later date predicated upon the Subcontractor's performance under this Subcontract and/or any mistake made by the Contractor in the valuation of the Subcontractor's work. REQUEST FOR 10% RETAINAGE UNTIL 50% OF PROJECT COMPLETION THEN - FULL REDUCTION TO 5%.

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4.4 Acceptance of Payment. The acceptance by the Subcontractor of any payment made after receipt by Contractor of its payment or any part thereof from the Owner, shall be and operate as a release to Contractor of all claims and all liabilities to the Subcontractor for all things done or furnished or relating to the Subcontract Work, and for every act of alleged neglect of Contractor arising out of the Subcontract, excepting only claims for retained percentages withheld by Contractor.

4.5 Subcontractor Bears Risks of Owner's Ability to Make Payments. To the fullest extent permitted by law, the Subcontractor agrees that Contractor shall be under no obligation to pay the Subcontractor for any Subcontract Work done on this Project, until and unless Contractor has been paid therefor by the Owner, and the provisions hereof, stating the time of progress and final payments and the amount thereof are expressly contingent upon and made subject to the condition that Contractor shall receive from the Owner progress or final payments of the amounts being claimed by the Subcontractor on account of Subcontract Work. The time when such payments shall be due the Subcontractor shall be postponed until Contractor has received same from the Owner, and the Subcontractor hereby expressly accepts the risk that he will not be paid for Subcontract Work performed by him in the event that Contractor, for whatever reason, is not paid by the Owner for such Work. The Subcontractor further agrees and acknowledges that it relies on the credit and ability to pay of the Owner, and not on that of Contractor, for payment of Subcontract Work performed, and that the payment by the Owner to Contractor for Subcontract Work performed by the Subcontractor, shall be an express condition precedent to any payment obligation of Contractor to the Subcontractor. The Subcontractor further agrees that the liability of the Surety on any Contractor Bond, if any, for payment to the Subcontractor, is subject to the same conditions precedent as are applicable to Contractor's liability for payment to the Subcontractor.

4.6 Payments to the Subcontractor are Trust Funds.

(a) The Subcontractor acknowledges that payments which it receives from the Contractor are trust funds for the benefit of persons supplying labor, materials and equipment to the Subcontractor for the prosecution of the Subcontract Work. The Subcontractor agrees that it shall (i) receive all such payments as trustee for the beneficiaries thereof, (ii) apply such payments only to the payment for labor, materials and equipment used by the Subcontractor in connection with the Subcontract Work until all such

obligations are discharged, and (iii) furnish satisfactory evidence, when requested by the Contractor, to verify compliance with these requirements.

(b) The Subcontractor shall promptly pay each of its subcontractors and suppliers, upon receipt of payment from the Contractor, the amount to which said Subcontractors and suppliers are entitled. The Subcontractor, by appropriate agreement with each of its subcontractors, shall require each of its subcontractors to make payment to its sub-subcontractors in similar manner. The Subcontractor shall defend and hold harmless the Contractor from and against any and all failures arising out of the Subcontractor's failure to make payments to its subcontractors and suppliers as provided herein.

4.7 Final Payment to Subcontractor. Subject to the provisions of paragraph 4.5, (a) Payment of the retainage withheld pursuant to paragraph 4.3 shall be due within sixty (60) days after completion and acceptance of the Subcontract Work by Contractor, the Architect and the Owner, provided first however, as a condition precedent, that (1) Contractor shall receive the Subcontractor's Application for Payment of the retainage (2) Contractor shall have received all funds for the Subcontract Work from the Owner, (3) the Subcontractor shall have furnished evidence satisfactory to Contractor that there are no claims, obligations or liens outstanding or unsatisfied for labor, services, materials, equipment, taxes or other items performed, furnished or incurred for or in connection with the Work; (4) Subcontractor shall have furnished to Contractor all records and/or as built drawings required; (5) Subcontractor shall have furnished to Contractor all warranties, operating manuals and all other documents required by the Contract Documents; and (6) the Subcontractor shall have executed and delivered in a form satisfactory to Contractor, an Affidavit of Payment and General Release running to and in favor of Contractor and its Surety (if any) and the Owner.

4.8 Contractor's Right to Withhold Payments. (a) If any claim or lien is made or filed with or against Contractor, the Owner or the Project by any person claiming that the Subcontractor or any subcontractor or other person under it has failed to make payment for any labor, services, materials, equipment, taxes or other items or obligations furnished or incurred for or in connection with the Subcontract Work, or if at any time there shall be evidence of such nonpayment or of any claim or lien for which, if established, Contractor or the Owner might become liable and which is chargeable to the Subcontractor, or if the Subcontractor or any subcontractor or other person under it causes damage to the Subcontract Work or to any other work on the Project, or if the Subcontractor fails to perform or is otherwise in default under any of the terms or provisions of this Subcontract or the other Contract Documents, Contractor shall have the right to retain from any payment then due or thereafter to become due the Subcontractor, an amount which it deems sufficient to (1) satisfy, discharge and/or defend against any such claim, lien or any action which may be brought or judgment which may be recovered thereon; (2) make good any such nonpayment, damage, failure or default; and (3) compensate Contractor and the Owner for any and all losses, liability, damages, costs and expenses, including legal fees and disbursements, which may be sustained or incurred by either or both of them in connection therewith, and the Subcontractor shall indemnify and hold harmless Contractor against the same. Contractor shall have the right to apply and charge against the Subcontractor so much of the amount retained as may be required for the foregoing purposes. If the amount retained is insufficient, the Subcontractor shall be liable for the difference and immediately upon notice pay the same to Contractor. Should there prove to be any such claim obligation or lien, after final payment is made, the Subcontractor shall immediately upon demand, make payment for, or refund to Contractor all monies that Contractor and/or the Owner shall have paid in satisfying, discharging or defending against any such claim, obligation or lien or any action brought or judgment recovered thereon and all costs and expenses, including legal fees and disbursements, incurred in connection therewith.

ARTICLE 5
Time of Commencement and Completion of the Subcontract

5.1 Starting and Completion Dates.

(a) The Subcontractor's starting and completion dates, milestone dates, and delivery dates (if applicable), shall be the same dates that are required of the Contractor under the terms of the Prime Contract for those portions of the Prime Contract being performed by the Subcontractor.

(b) Where the dates for the commencement or completion of work or the making of deliveries are not specified or if said dates are specified but Contractor shall require such commencement or deliveries prior to or after the time fixed for such commencement, such work or deliveries shall be commenced on three (3) days' notice from Contractor and shall be prosecuted and completed with all possible diligence and speed or as otherwise directed by Contractor. The time stated in this Subcontract for the commencement, prosecution and completion of the Subcontract Work and the deliveries and installation of material shall be deemed of the essence of this Agreement.

(c) If the progress of the Subcontract Work or of the Project is delayed not because of any fault or neglect or act or failure to act on the part of the Subcontractor, or any party for whom it is responsible, including any of its officers, agents, servants, employees or subcontractors, then Contractor, if it deems necessary, may direct the Subcontractor to work overtime and if so directed the Subcontractor shall work overtime and Contractor will pay the Subcontractor for such overtime an amount equal to the actual

additional wages paid, if any, at rates which have been approved in writing by Contractor plus taxes and other charges imposed by law on the additional wages required to be paid by the Subcontractor.

(d) The Subcontractor shall, at its sole expense, work overtime, including Saturdays and Sundays at the direction of Contractor, if in the judgment of Contractor such overtime and Saturday/Sunday work is necessary to meet progress requirements due to any delays caused by the Subcontractor or the failure by the Subcontractor to commence its work timely or the failure by the Subcontractor to be in conformity with the job progress.

(e) Without limiting in any way the Contractor's other remedies, either under this Subcontract or at law, the Subcontractor shall be responsible for, and shall reimburse the Contractor for all liquidated damages and other damages which the Contractor is required to pay to the Owner, or which the Owner deducts from amounts payable to the Contractor, caused by the Subcontractor's failure to perform timely in accordance with the Progress Schedule or comply with the starting and completion dates, milestone dates, and delivery dates established by the Prime Contract.

5.2 Construction Schedule. (a) At any time, upon request by the Contractor or if the Contractor is required to submit to the Owner updated construction schedules (whether automated CPM schedules or other types of schedules) as the work progresses, then the Subcontractor shall (1) provide to the Contractor, in form acceptable to the Contractor, at least ten (10) days prior to the date on which each such updated construction schedule is due, all information concerning the Subcontract Work and the Subcontractor's orders of materials and equipment reasonably required for incorporation in the construction schedule, and (2) attend construction schedule meetings as required by the Contractor. Information submitted by the Subcontractor and its acceptance and/or approval by the Contractor and all scheduling that may be developed and implemented therefrom by the Contractor shall not constitute the basis of any claim by the Subcontractor or its subcontractors or materialmen for damage or delay or excuse the Subcontractor's performance as required hereunder.

5.3 Submittal of Shop Drawings.

(a) The Subcontractor shall promptly submit shop drawings and samples as required by the Prime Contract (including the drawings and specifications) in order to perform its Subcontract Work efficiently, expeditiously and in a manner that will not cause delay in the progress of the work of the Contractor or of other subcontractors.

(b) Without limiting the generality of the foregoing Paragraph, Subcontractor (i) agrees to cooperate with the Contractor in preparing and updating a monthly schedule for submittal of shop drawings and samples coordinated with the Contractor's construction schedule, and (ii) agrees to comply with the schedule for submittals as it applies to the Subcontract Work.

(c) Contractor's or Architect's review or approval of any Subcontractor submittals shall not relieve Subcontractor of any of its obligations under the Subcontract.

5.4 Subcontractor's Responsibility to Coordinate Work and to Cooperate With Contractor and other Subcontractors.

(a) The Subcontractor shall proceed with the Subcontract Work in a prompt and diligent manner, without delay, and shall perform the work so as not to delay the other contractors and subcontractors at the Project and to insure completion of the Subcontract Work in accordance with the progress schedule as agreed to by Contractor and as may be modified during construction at the sole discretion of Contractor.

(b) The Subcontractor shall coordinate its work and cooperate with the Contractor and other contractors and subcontractors whose work might interfere with the Subcontract Work. Subcontractor shall participate in the preparation of coordinated drawings as required by the Contractor, specifically noting and advising the Contractor of any interference.

(c) With respect to inserts, hangers, anchors, chases, slots, sleeves, recesses, openings and the like required in connection with the Subcontract Work, the Subcontractor shall be responsible for correct sizes and locations, shall cooperate with other subcontractors affected thereby, and shall provide all information, templates and supervision which may be required in connection therewith.

(d) Should the proper and accurate performance of the Work hereunder depend upon the proper and accurate performance of other work not covered by this Subcontract, the Subcontractor shall carefully examine such other work, determine whether it is in fit, ready and suitable condition for the proper and accurate performance of the Subcontract Work, use all means necessary to discover any defects in such other work, and before proceeding with the Subcontract Work, report promptly any improper conditions and defects to Contractor in writing and allow Contractor a reasonable time to have such improper conditions and defects remedied. Upon the commencement of work by the Subcontractor, the Subcontractor shall have conclusively accepted such other work as fit, ready and in a condition suitable and sufficient for the proper and accurate performance of the Subcontract Work hereunder.

(e) Notwithstanding the dimensions given on the plans, specifications and other Contract Documents it shall be the obligation and responsibility of the Subcontractor to take such measurements as will insure the proper matching and fitting of the Subcontract Work with contiguous work.

(f) The Subcontractor shall not employ persons, means, materials or equipment which or whose presence or performance on or at the Project are likely to cause strikes, work stoppages or any disturbances by workmen employed by the Subcontractor, Contractor or

other contractors or subcontractors, on or in connection with any work on the Project. The Subcontractor agrees that all disputes as to jurisdiction of trades shall be adjusted in accordance with any plan for the settlement of jurisdictional disputes which may be in effect in the locality in which the Subcontract Work is being done and that it shall be bound and abide by all such adjustments and settlements of jurisdictional disputes, provided that the provisions of this Article shall not be in violation of or in conflict with any provisions of law applicable to the settlement of such disputes.

ARTICLE 6

Change Orders; Additions to And Deletions from the Subcontract Work

6.1 Subcontractor Agrees to Comply with Change Orders.

(a) The Contractor reserves the right to make changes in, additions to and/or deletions from the Subcontract Work, as it may deem necessary, upon written order to the Subcontractor. The Subcontractor agrees to comply with all such written orders. The Subcontractor also agrees to comply with all orders of the Owner or Architect conveyed through the Contractor, making changes in, additions to and/or deletions from the work covered by the Prime Contract insofar as they affect the Subcontract Work. The Subcontractor acknowledges and agrees that it will make no claim for extra or additional compensation on account of any such additional work unless same shall be done pursuant to a written order signed by a representative of the Contractor, with the authority to order such extra work.

(b) The Subcontractor acknowledges that the drawings and specifications describing the Subcontract Work may not be complete as of the date of this Subcontract. No adjustment in the Price, or in the final completion or milestone dates for the Subcontract Work shall result from the completion, refinement and detailing of the plans and specifications unless it results in a change in scope, quality and/or function which is not reasonably inferable or anticipatable by an experienced subcontractor in the Subcontractor's trade and unless the Subcontractor advises the Contractor of its claim for adjustment in sufficient time to permit the Contractor to timely satisfy the notice requirements imposed by the Prime Contract for the submission of a claim to the Owner and recover payment for the Subcontractor's claim from the Owner.

6.2 Amounts to be Added to or Deducted from the Subcontract Price for Changes Directed by the Owner. The amounts to be added to or deducted from the Price for changes in, additions to, or deletions from the Subcontract Work directed by the Owner or Architect shall be the amounts recovered by the Contractor from the Owner pursuant to the provisions of the Prime Contract, less the fee and any other mark-ups allowed to the Contractor.

6.3 Amounts to be Added to or Deducted from the Subcontract Price for Changes Directed by the Contractor.

(a) With respect to changes in, additions to and/or deletions from the Subcontract Work directed by the Contractor but not by the Owner, the Contractor's written order shall state the amount to be added to or deleted from the Price on account of such change, additions and/or deletion. The amount shall be determined by the lump sum or unit prices, if any, which are established for such work by this Subcontract. If no such prices are established, and if the Contractor and Subcontractor are unable to reach agreement as to the value of any changed or additional work, the Subcontractor shall nevertheless proceed to perform the changed or additional work and shall be paid for such work an amount equal to the Subcontractor's actual, direct and reasonable out-of-pocket cost for additional labor, materials and equipment occasioned by such change or required for such additional work, less any such savings for deleted work, plus TEN percent **(10%)** of such actual, direct and reasonable out-of-pocket cost for supervision, overhead and profit. In such circumstances, time records, material bills and equipment costs shall be submitted to the Contractor on a daily basis for verification and, if the Contractor verifies them, the Contractor shall so indicate in writing on said records. In the event the additional work is performed by a sub-Subcontractor, the sub-Subcontractor actually performing the work shall be entitled to a FIVE percent **(5%)** mark-up for supervision, overhead and profit, and the Subcontractor's mark-up, and that of any intermediate sub-Subcontractor, shall be limited to FIVE percent **(5%)**. In no event shall the total of all mark-ups exceed TEN percent **(10%)**.

(b) Where any additional work is to be paid on a reasonable cost of the work basis, the Subcontractor shall permit Contractor to audit its books. The Subcontractor shall produce any and all data which Contractor may request for the purpose of determining the correctness of the charges. Upon a Subcontractor's failure to do so, it shall not be entitled to any payment for the additional work. In regard to the foregoing and generally, the Subcontractor hereby authorizes Contractor to check directly with its suppliers of labor and materials the charges for such labor, materials and other items appearing in the Subcontractor's bills rendered to Contractor, to confirm balances due and obtain sworn statements and waivers of lien.

6.4 Disputed Work.

(a) In the event that Contractor directs the Subcontractor to perform any item of work, which the Subcontractor claims involves extra or additional work, it shall, within three (3) days after receipt of such direction, and before proceeding therewith, make written claim to Contractor, giving in detail the basis of its contention that the work is extra or additional, together with a detailed breakdown

showing separately the additional cost of each item of labor and material. The Subcontractor shall then proceed with the work unless the Contractor directs otherwise. A failure to make written notice of claim within the time specified, and in the manner as herein provided, shall constitute a waiver of such claim and no recovery may be had by the Subcontractor. A failure of the Subcontractor to perform this work, immediately after giving written notice of its claim, or on the fourth (4th) day subsequent to being directed to perform this work, whichever is less, shall constitute a material breach of this Agreement, regardless of the legitimacy of the Subcontractor's contentions, as it is specifically understood and agreed that the progress of the Subcontract Work may not be delayed by reason of any controversy between the parties.

(b)

(i) Upon the receipt of the Subcontractor's written notice of its claim, Contractor may submit same to the Architect or Owner for its determination. The Subcontractor agrees to be bound by the determination of the Architect or Owner and will accept such payment, if any, as specified by the Architect or Owner and approved by the Owner, as full and final payment for all claims submitted. Should the Architect or Owner determine that the work is not an extra and awards no payment, the Subcontractor agrees to accept said determination as payment in full

(ii) Contractor, at its sole, exclusive and arbitrary discretion, may appeal from any ruling or may institute suit for damages for extra work or contest any deduction or refusal to pay by the Owner for any reason which involves the Subcontract Work. In that event, the Subcontractor shall pay the cost of appeal or suit, and shall render every assistance, without cost to Contractor, in the prosecution of said appeal or suit. The Subcontractor shall otherwise be bound by the determination of the Owner; and/or its Architect; or in the event of an appeal or suit, by determination in said appeal or suit or by any settlement made by Contractor, in good faith, at any time during the pendency of said appeal or suit. In the case of any recovery, the Subcontractor shall be entitled to those amounts allocated to its work, less overhead and profit to Contractor and all expenses and attorneys' fees incurred by Contractor in prosecuting such appeal or suit.

(iii) All claims asserted by the Subcontractor under this Subcontract arising out of or relating to any action or inaction by the Port Authority or any entity or person for which it may be responsible, shall be decided in accordance with the terms and conditions of the Prime Contract, including any choice of law provision required by the Prime Contract.

(c) The Subcontractor agrees that no claim, invoice or application for payment shall include any modifications to the Price, without an executed change order, pursuant to which such work is eligible for payment.

ARTICLE 7
Subcontractor's Performance and Labor and Material Payment Bonds

BONDS ARE NIC 3/24/26

7.1 Contractor's Option to Require Bonds. If requested to do so by the Contractor at any time, either prior to commencement or during performance of the Subcontract Work, the Subcontractor shall deliver to the Contractor performance and labor and material payment bonds, each in the amount equal to one hundred percent (100%) of the Price. The form of, and the sureties upon, said bonds must be acceptable to the Contractor, and the Contractor's decision in this regard shall be final and binding on the Subcontractor. The Subcontractor's failure to provide acceptable bonds shall be a material breach of, and ground for termination of, this Subcontract.

7.2 Payment of Premiums for Bonds. If the Contractor requires bonds pursuant to paragraph 7.1 of this Subcontract, it shall reimburse the Subcontractor for the premiums actually paid for such bonds after receipt of satisfactory evidence of the Subcontractor's payment of the premiums. No overhead or profit will be added to the amount of the premiums.

ARTICLE 8
Temporary Facilities and Services

8.1 Subcontractor Fully Responsible For Its Temporary Facilities and Services.

(a) The Contractor shall have no obligation to furnish or make available to the Subcontractor any temporary facilities and services, it being specifically understood, without in any way limiting the generality of the foregoing, that the Subcontractor is responsible for its own mobilization, demobilization and clean up.

(b) Regardless of the provisions of the Prime Contract or any Contract Documents, the Contractor will not be required to provide any watchman service for the protection of the Subcontractor and will not in any manner be answerable or accountable for any loss or damage, including theft, that shall or may happen to the said Subcontract Work, or any parts thereof respectively, or any of the materials or other things used or employed in finishing or completing the Subcontract Work.

ARTICLE 9

Insurance to be Provided by Subcontractor

9.1 (a) Before starting work, Subcontractor shall submit to Contractor insurance certificates evidencing the following insurance coverage in form and with companies satisfactory to Contractor and shall keep such certificates in effect until the work has been completed. Such certificates shall provide that insurance will not be cancelled or changed without thirty (30) days prior written notice to Contractor.

(i) Workers' Compensation

Part A - Statutory

Part B - $1,000,000 Each Accident
$1,000,000 Disease – Policy Limit
$1,000,000 Disease – Each Employee

(ii) Commercial General Liability Insurance
(Commercial Single Limit)

1. Each Occurrence Limit	$2,000,000
2. General Aggregate	$4,000,000
3. Products/Completed Operations Aggregate	$4,000,000
4. Personal and Advertising Injury Limit	$2,000,000
5. XCU (Explosion, Collapse, Underground Hazard)	Coverage Included
6. Per Project Endorsement Required	Coverage Included
7. Fire Damage (Any One Fire)	$50,000
8. Medical Expense (Any One Person)	$10,000

(iii) Umbrella (Following Form Over Primary) $5,000,000

Per occurrence and in the aggregate where applicable including (the per project endorsement).

(iv) Comprehensive Automobile Liability

For any auto including owned, hired and non-owned automobiles.
(Combined Single Limit)
1. Bodily Injury and Property Damage $1,000,000

(v) All other policies of insurance required either by the Prime Contract or by law.

*See attached sample Certificate of Insurance

(b) In the event that pursuant to the terms of the Prime Contract, the Owner implements a wrap up insurance program as described therein, then the Subcontractor shall comply with the terms and conditions with the "Wrap Up Insurance Rider" attached to this Subcontract.

9.2 Additional Insured; Deductibles Subject to Contractor's Approval; Notice of Change, Non-renewal or Cancellation. The Contractor, Owner, Port Authority and any others required by the Contract Documents shall be named as an additional insureds under all insurance policies, except Workman's Compensation, using ISO Additional Insured Endorsement – CG 2010 (11 85) or CG 2010 (10 93) and CG 2037 (10 01) or CG 2033 (10 01) and CG 2037 (10 01) or equivalent. All deductibles in the aforesaid policies must be approved in advance and in writing, by the Contractor. Each of the policies must include an endorsement providing that the policy will not be changed, non-renewed or cancelled without thirty (30) days prior written notice to the Contractor.

9.3 Evidence of Insurance. Prior to starting the Subcontract Work, the Subcontractor shall obtain the insurance required by this Subcontract from an insurer satisfactory to the Contractor, and shall furnish to the Contractor certificate(s) of insurance evidencing that the Subcontractor has complied with the requirements of this Article. Subcontractor shall also promptly provide to Contractor, a certified copy of each policy.

9.4 Compliance by the Subcontractor with the foregoing requirements as to the carrying of insurance and furnishing of certificates of insurance, shall not in any way relieve the Subcontractor from any liability or diminish its obligations under this Article or any other provision of this Subcontract.

9.5 The Subcontractor covenants and agrees that it shall not sublet any part of the Subcontract Work without requiring its subcontractors to purchase and maintain insurance policies and coverage required by the terms and conditions of Article 9.1. The Subcontractor shall furnish satisfactory evidence that its subcontractors have purchased said insurance by causing a certificate of insurance to be furnished to Contractor.

9.6 The Subcontractor and its insurers waive any and all rights of subrogation against Contractor, the Architect, the Owner, the Port Authority and their insurers. The Subcontractor shall require a similar waiver from each of its subcontractors, sub-Subcontractors, consultants and agents, and their insurers.

9.7 Subcontractor's insurance is primary overContractor's insurance which is non-contributory.

ARTICLE 10
Subcontractor's Indemnification in Favor of the Contractor

10.1 Indemnification Agreement.

(a) To the fullest extent permitted by law, the Subcontractor hereby assumes entire responsibility and liability for any and all damage or injury of any kind or nature whatever (including death resulting therefrom) to all persons, whether employees of the Subcontractor or otherwise, and to all property, caused by, resulting from, arising out of or occurring in connection with the execution of the Subcontract Work; and if any claims for such damage or injury (including death resulting therefrom) be made or asserted, whether or not such claims are based upon Contractor's or the Owner's or the Port Authority's alleged active or passive negligence or participation in the wrong or upon any alleged breach of any statutory duty or obligation on the part of Contracto or the Owner or the Port Authority, the Subcontractor agrees to defend, indemnify and save harmless Contractor, or the Owner and the Port Authority, their officers, agents, servants and employees from and against any and all such claims, and further from and against any and all loss, cost expense, liability, damage or injury, including legal fees and disbursements, that Contractor or the Owner or the Port Authority, their officers, agents, servants or employees may directly or indirectly sustain, suffer or incur as a result thereof and the Subcontractor agrees to and does hereby assume, on behalf of Contractor or the Owner or the Port Authority, their officers, agents, servants and employees, the defense of any action at law or in equity which may be brought against Contractor or the Owner or the Port Authority, their officers, agents, servants or employees upon or by reason of such claims and to pay on behalf of Contractor or the Owner or the Port Authority, their officers, agents, servants and employees, upon demand the amount of any judgment that may be entered against Contractor or the Owner and the Port Authority, their officers, agents, servants or employees in any such action. In the event that any such claims, loss, cost, expense, liability, damage or injury arise, or are made, asserted or threatened against Contractor or the Owner or the Port Authority, their officers, agents, servants or employees, Contractor shall have the right to withhold from any payments due or to become due to the Subcontractor an amount sufficient in Contractor's judgment to protect and indemnify it and the Owner and the Port Authority and their officers, agents, servants and employees from and against any and all such claims, lost, cost expense, liability, damage or injury, including legal fees and disbursements, or Contractor, in its discretion, may require the Subcontractor to furnish a surety bond satisfactory to Contractor guaranteeing such protection, which bond shall be furnished by the Subcontractor within five (5) days after written demand has been made therefor.

(b) Subcontractor and Contractor expressly agree that this indemnification agreement contemplates: (i) full indemnity in the event of liability imposed by the Indemnified Parties without negligence and solely by reason of statute, operation of law or otherwise; and (ii) partial indemnity in the event of any actual negligence on the part of the Indemnified Parties either causing or contributing to the underlying claim, in which case indemnification will be limited to any liability imposed over and above that percentage attributable to actual fault, whether by statute or otherwise. Where partial indemnity is provided under this Subcontract, all costs, professional fees, attorneys' fees, expenses and disbursements and other litigation or investigative expenses shall be paid by Subcontractor on a pro rata basis.

(c) The Subcontractor agrees that the obligation to defend, indemnify and hold harmless as described above exists whether such injuries to persons or damage to property are due, or are claimed to be due to the negligence of the Contractor and/or Owner and/or the Port Authority or the agents, servants and employees of the Contractor and/or Owner and/or the Port Authority or other subcontractors, excepting from the foregoing, the sole and complete negligence of the Contractor, to the fullest extent permitted by law.

(d) The Subcontractor agrees that the obligation to defend commences when a claim is made against the Owner, the Port Authority, and/or Contractor, even if the Subcontractor disputes its obligation to indemnify and hold harmless. Should the Subcontractor delay in its obligation to defend such a claim, the defense shall be provided through counsel, chosen by the Contractor. The Subcontractor agrees to pay for all defense costs of the Contractor and/or Owner and/or the Port Authority upon demand.

(e) Subcontractor shall not, without obtaining express advance written permission from the General Counsel for the Port Authority, raise any defense involving the immunity of the Port Authority, its Commissioners, officers, agents or employees, the governmental nature of the Port Authority, or the provisions of any statutes respecting suits against the Port Authority.

(f) The Subcontractor agrees to be bound to the Contractor by the terms and conditions of the Contractor's agreement with the Owner, a copy of said agreement being available for inspection at the office of the Contractor. The Subcontractor further agrees that all conditions and requirements imposed, or to be imposed, upon the Contractor by its contract with the Owner shall be performed by the Subcontractor insofar as applicable to the work under the Subcontract, and the Subcontractor hereby assumes toward the Contractor all obligations and responsibilities that the Contractor, by contract, has assumed or will assume toward the Owner with respect to said work.

10.2 In addition to the foregoing and not in limitation thereof, the Subcontractor shall defend, indemnify and hold harmless the Contractor, its agents, servants and employees from and against any costs, claims and damages of every nature (including attorney's fees) which arise out of or relate to the Subcontract Work and/or any failure of the Subcontractor to perform its obligations as required by the Subcontract and the other Contract Documents.

ARTICLE 11
Delays

11.1 (a) Should the Subcontractor be obstructed or delayed in the commencement, prosecution or completion of the Subcontract Work because of conditions not attributable to the Subcontractor and which by the terms of the Prime Contract may be grounds for an extension of time, it shall, in full and complete compensation for said delay and as its sole remedy, within twenty four (24) hours thereafter, make claim to Contractor in writing for an extension of time, and Contractor may award and certify the amount of additional time to be allowed, if any. For any reason not attributable to the Contractor, the extension of time shall be the same as shall be allowed by the Owner to Contractor under the Prime Contract for said delay. If the Subcontractor fails to furnish to Contractor timely written notice in accordance with this paragraph, the Subcontractor agrees that it has waived any right to any such extension of time. Where any act or omission of the Contractor delays the Subcontractor, either concurrently with an Owner-caused delay or without any fault of the Owner, the Subcontractor agrees (i) to make no claim against the Contractor for damages for delay in the performance of the Subcontract Work occasioned by such act or omission of the Contractor, and (ii) to accept as full compensation for such delay an extension of its time in which to complete performance of the Subcontract Work.

(b) The Subcontractor acknowledges that the Price is based on the fact that the Contractor is not liable absent actual fraud or intentional misconduct, for any damages or costs due to delays, accelerations, impact, non-performance, interferences with performance, suspension or changes in the performance or the sequence of the Contractor's Work, whether or not caused by the Contractor and even if the Contractor wrongfully denies the Subcontractor's request for an extension of time. The Contractor shall have the right at any time to delay, accelerate or suspend the execution of the whole or any part of the Subcontract Work or vary the sequence of performance without compensation to the Subcontractor other than extending the time for completing the Work for a period equal to such delay or suspension.

11.2 Delays Caused By Owner. Notwithstanding anything to the contrary, and in the sole discretion of the Contractor, in the event the Owner delays the Subcontractor and/or the Owner delays the Contractor and the Subcontractor is thereby delayed, the Contractor may, submit any and all claims by the Subcontractor for additional compensation to the Owner provided however that (i) the Subcontractor has timely submitted to the Contractor all notices and claims required by the Prime Contract, with respect to delays so that the Contractor can timely comply with the notice requirements of the Prime Contract and the Subcontractor shall accept the Contractor's prosecution of such claims at the Subcontractor's expense and the Contractor's payment to the Subcontractor of any money that the Contractor may receive from the Owner upon Subcontractor's claims, in full and complete satisfaction and liquidation of Contractor's obligation to Subcontractor, it being understood and agreed that the Contractor shall not have any other liability or responsibility to the Subcontractor by reason of Owner caused delays. The Contractor shall, at all times, retain the right to direct the prosecution of the claims and to decide, in its sole good faith discretion without further liability to the Subcontractor, whether such claims should be abandoned, settled or litigated, which decision shall be final and binding on the Subcontractor.

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11.3 Delays Caused By Other Subcontractors or Contractors. In the event the Subcontract Work is damaged, or should the Subcontract Work be delayed or interfered with by any other subcontractor or other contractor on the Project, the Subcontractor and each such subcontractor or other contractor shall be directly responsible to the other, each shall look solely to the other for compensation, and the Subcontractor will not seek compensation or damages from Contractor by reason thereof.

ARTICLE 12

Compliance with Laws, Including Those Relating to Affirmative Action and Safety

12.1 Subcontractor Required to Comply with All Applicable Laws. The Subcontractor shall comply with all federal, state and local statutes, ordinances, laws, executive orders, rules and regulations as may be applicable to it and to the Subcontract Work, including, without limitation, labor laws; health and safety laws; tax laws; social security acts; unemployment compensation acts and workers' compensation acts; disability insurance acts; laws, executive orders, rules and regulations relating to equal employment opportunity, non-discrimination, and affirmative action; and all rules and regulations of the Port Authority, the Federal Aviation Administration, and/or any state or federal agency having jurisdiction over the Project. Failure to comply with any such statute, law, ordinance, executive order, rule or regulation shall be a material breach of this subcontract and ground for termination of this Subcontract. The Subcontractor agrees to save harmless and indemnify Contractor from and against any and all loss, injury, claims, actions, proceedings, liability, damages, fines, penalties, costs and expenses, including legal fees and disbursements caused or occasioned, directly or indirectly by Subcontractor's failure to comply with any of said laws, ordinances, rules, regulations, orders, notices and requirements.

12.2 Equal Employment Opportunity.

(a) Without in any way limiting the generality of the foregoing paragraph 12.1 or the remedies of the Contractor for the Subcontractor's breach thereof, the Subcontractor by execution of this subcontract (i) acknowledges that it is required to comply with, and agrees to comply with, all applicable federal, state and local laws, executive orders, ordinances, rules, and regulations regarding equal\ employment opportunity, non-discrimination, and affirmative action in the recruitment, training, hiring, and promotion of women and minorities (as that term may be defined by the applicable authorities), (ii) agrees to make every good faith effort to meet all goals and quotas imposed upon it either directly or through the Contractor, (iii) agrees to maintain all records necessary to document and establish such good faith efforts, and (iv) agrees to indemnify the Contractor and hold it harmless from any and all damages, losses and expenses which the Contractor may incur as a result of the Subcontractor's breach of its obligations under this paragraph.

(b) The requirements for the Project are noted below and made a part of this Subcontract. The Subcontractor will comply with such requirements, including, without limitations, making and documenting every good faith effort to achieve:

(1) The following goals for minority and female participation, expressed as a percentage of the Subcontractor's aggregate work force in each trade on all of the Subcontract Work:

Minority Participation	Minority, except laborers	30%
	Minority, laborers	40%
Female Participation	Female, except laborers	6.9%
Female, laborers	6.9%; and	

(2) The goal of subcontracting and/or vendor purchases is at least thirty percent (30%) of the total value of the Subcontract Work to Minority Business Enterprises and Women Owned Business Enterprises, of which at least twenty percent (20%) shall be to Minority Business Enterprises and ten percent (10%) shall be to Women Owned Business Enterprises.

(c) The Subcontractor shall include these requirements in all of its subcontracts, and shall require its subcontractors to include these provisions in all of their subcontracts, so that all tiers of construction under this Subcontract are bound by said requirements.

(d) Proposed M/WBE participation plan is to be submitted 10 days after award of Subcontract on the contractor supplied MWBE/Local Subcontractor Participation Form.

12.3 Safety Precautions; Compliance with Safety Requirements.

(a) Without in any way limiting the generality of the forgoing paragraph 12.1 or the remedies of the Contract for the Subcontractor's breach thereof, the Subcontractor (i) agrees to take all reasonable safety precautions with respect to the Subcontract work, (ii) agrees to comply with all safety measures imposed by the Prime Contract or initiated by the Contractor or the unions having jurisdiction of the workers on the Project, and (iii) agrees to comply with all applicable federal, state and local laws, ordinances, rules, regulations and orders, including, without limitation, those of the Occupational Safety and Health Administration, relating to the safety of persons or property.

(b) The Subcontractor shall report within twenty-four (24) hours to the Contractor any injury to any employee of the Subcontractor or its sub-Subcontractors at the site.

12.4 Hazardous Substances.

(a) The Subcontractor shall not transport to, use, generate, dispose of, or install at the Project site any hazardous substance (as defined in any local, state or federal law, rule, or regulation, including, without limitation, The Comprehensive Environmental Response, Compensation and Liability Act of 1980 [CERCLA], The Resource Conservation and Recovery Act [RCRA], The Toxic Substances

Control Act [TSCA], The Clean Water Act [CWA], The Clean Air Act [CAA], The Marine Protection Research and Sanctuaries Act [MPRSA], The Occupational Safety and Health Act [OSHA], and The Superfund Amendments and Reauthorization Act of 1986 [SARA]), except as specifically called for in the Contract Documents and, then, in accordance with all applicable environmental laws. Further, in performing the Subcontract Work, the Subcontractor shall not cause any release of hazardous substances into, or contamination of, the environment, including the soil, the atmosphere, any water course or ground water, except in accordance with applicable environmental laws.

(b) In the event the Subcontractor encounters on the site any material reasonably believed to be hazardous material (including, without limitation, asbestos or polychlorinated biphenyl [PCB]) which has not been rendered harmless, the Subcontractor shall immediately stop work in the area affected and report the condition to the Contractor in writing. Work in the affected area shall not thereafter be resumed except by written authorization of the Owner and Contractor.

(c) Subcontractor shall comply with Occupational Safety and Health Administration (OSHA), Hazard Communication Standard (HCS) 29CFR 1926.59, and shall establish a hazard communication program to transmit information on the hazards of chemicals to their employees by means of labels on containers, material safety data sheets, and training programs. Subcontractor is required to provide labels on all containers, provide material safety data sheets on all chemicals to be used in construction, and substantiate existence of a training program on hazard communication for its employees

12.5 Noise. The Subcontractor shall at all times perform its work in such manner that there will be a minimum of noise emanating from, arising out of or resulting from the Subcontractor's operations. The Subcontractor shall comply with all directions of the Owner, and the Port Authority and/or any local, state or federal agency having jurisdiction, with respect to noise control and abatement.

12.6 Waste Disposal. The Subcontractor shall dispose of all waste and construction debris in conformity with all applicable laws, rules and regulations. All waste disposal must be documented with hauling tickets and submitted to the Contractor for inclusion in the Project Waste Management Plan.

12.7 Immigration Control. Subcontractor shall comply with the provisions of the Immigration Reform and Control Act of 1986 and any and all amendments to said act, and all rules and regulations promulgated by the Immigration and Naturalization Service.

ARTICLE 13
Addition Responsibilities of The Subcontractor

13.1 Subcontractor's Obligation to Protect Its Work and the Work of Others.

(a) The Subcontractor shall take all necessary precautions to protect properly the work of others (including, without limitation, the Contractor and other subcontractors) from damage caused by the Subcontractor's operations. Should the Subcontractor damage the work of others, it shall immediately repair the same.

(b) Neither the Owner nor Contractor shall be responsible for any loss or damage to the Subcontract Work to be performed and furnished under this Agreement, however caused, until after final acceptance thereof by Contractor and the Owner, nor shall Contractor or the Owner be responsible for loss or damages to materials, tools, equipment, appliances or other personal property owned, rented or used by the Subcontractor or anyone employed by it in the performance of the Work, however caused.

13.2 Subcontractor's Obligation to Keep Project Clean. The Subcontractor shall on a daily basis or less frequently, in the sole discretion of Contractor; and at the Subcontractor's own cost and expense, (1) keep the area of the premises in which the Work is being performed free at all times from all waste materials, packaging materials and other rubbish accumulated in connection with the execution of the Subcontract Work by collecting and depositing daily said material and rubbish in locations as designated by Contractor from which it shall be removed by the Subcontractor from the Premises without charge, (2) clean and remove from its own work and from all contiguous work of others any soiling, staining, mortar, plaster, concrete or dirt caused by the execution of the Subcontract Work and make good all defects resulting therefrom (3) at the completion of its Subcontract Work in each area, perform such cleaning as may be required to leave the area "broom clean" and (4) upon the completion of the Subcontract Work, removal of all of its tools, equipment, scaffolds, shanties, trailers and surplus materials. Should the Subcontractor fail to perform any of the foregoing to Contractor's satisfaction, Contractor shall have the right after notice (written or oral) to perform and complete such work itself or through others and deduct the cost thereof from payments due the Subcontractor. CENTERPILE 3/24/26

13.3 Subcontractor's Warranty.

(a) The Subcontractor warrants that all materials and equipment furnished by it and incorporated by it into the Project shall be new unless otherwise specified, and that all work under this Subcontract shall be of first quality, free from faults and defects, and in conformance with the Prime Contract. All materials, equipment and work not conforming to these standards may be considered defective and, if so directed by the Owner, Architect, or Contractor, shall be replaced at the Subcontractor's expense. The warranty

provided in this paragraph shall be in addition to and not in limitation of any other warranty or remedy imposed by law or by the Prime Contract.

(b) This warranty and all other warranties and remedies imposed upon the Subcontractor by law or by the Prime Contract shall be for the benefit of and may be enforced by, the Contractor, the Owner and the Port Authority and/or any other agency having jurisdiction.

13.4 Subcontractor's Reports. The Subcontractor shall furnish weekly progress reports on the Subcontract Work as requested by the Contractor, including information on the status of materials and equipment under this Subcontract which may be in the course of preparation or manufacture.

13.5 Notices; Permits; Fees. The Subcontractor shall give all notices required by laws, ordinances, rules, regulations and orders applicable to the Subcontract Work, and shall pay all fees and secure all permits and licenses necessary for the execution of the subcontract work.

ARTICLE 14
Termination of Subcontract for the Convenience of the Contractor

14.1 Contractor's Right to Terminate for Its Convenience.

(a) The Contractor shall have the right at any time after the commencement of the Subcontract Work to terminate this Subcontract for its convenience for any reason whatsoever, or for no reason, by sending two (2) days written notice of such termination to the Subcontractor

(b) Any termination of the Subcontract by the Contractor for the Subcontractor's default pursuant to Article 15 of the Subcontract which is subsequently held to be improper and/or wrongful shall be deemed to be a termination for convenience pursuant to this paragraph 14.1, and the Subcontractor's recovery therefor shall be limited to amounts due under the following paragraph 14.2

14.2 Payment to Subcontractor In the Event of Termination for Convenience.

(a) In the event of termination, and provided that the Subcontractor is not in default, the only liability of the Contractor to the Subcontractor shall be to pay the amount due for Subcontract Work actually performed computed in the manner set forth in Article 3 of this Subcontract, and the Contractor shall not be liable to the Subcontractor for any anticipated profit on the uncompleted portion of the Subcontract Work or for any other damages whatsoever.

(b) Notwithstanding the foregoing, in the event that the Owner terminates the Prime Contract for any reason whatsoever, at any time, then the Subcontract is therefore terminated for the Contractor's convenience. In that event, Contractor shall be liable only for the amount actually received by it for the Work performed by the Subcontractor, less Contractor's appropriate share of said sums; and in no event shall the amount received by the Subcontractor be a greater sum than that which Contractor obtains from the Owner whether such sum is received by reason of additions, omission or termination; and deducted therefrom shall be the Subcontractor's proportionate share of all expenses incurred by Contractor (including litigation costs and attorneys' fees, if any) and reasonable overhead and profit to Contractor. The recovery, if any, by the Subcontractor shall be entirely conditioned upon the receipt of payment by Contractor from the Owner. In the event of a deduction, the amount of the deduction taken by the Owner shall be binding upon the Subcontractor.

ARTICLE 15
Termination for Default

15.1 Contractor's Right To Terminate for Default. In the event the Subcontractor (1) fails to supply a sufficient number of skilled workers or sufficient materials or equipment, (2) fails promptly and timely to prosecute the subcontract work, (3) delays, interferes with or damages the work of the Contractor or of any of the other contractors or subcontractors on the Project (4) fails timely to pay for labor, materials and equipment used in the performance of the Subcontract Work, (5) fails to perform any other terms and provisions of the subcontract, or (6) files a petition under the United States Bankruptcy Code, is adjudged bankrupt, makes a general assignment for the benefit of creditors, initiates any other insolvency proceeding, or becomes subject to a receivership it shall be in default of the Subcontract. In the event of a default, the Contractor shall have the right, in addition to any other rights or remedies otherwise provided by this Subcontract and the other Contract Documents or by law, after three (3) days written notice to the Subcontractor mailed or delivered to the last known address of the Subcontractor should the default not be cured, (a) to perform and furnish through itself or through others any such labor or materials for the Subcontract Work and to deduct the cost thereof from any monies due or to become due to the Subcontractor under this Subcontract, and/or (b) to terminate the employment of the Subcontractor for all or any portion of the Subcontract Work, enter upon the premises and take possession for the purpose of completing the Subcontract Work, of

all materials, equipment, scaffolds, tools, appliances and other items thereon, all of which the Subcontractor hereby transfers, assigns and sets over to Contractor for and until the completion of such Subcontract Work, and to employ any person or persons to complete the Subcontract Work and provide all the labor, services, materials, equipment and other items required therefore. In case of such termination of the employment of Subcontractor, the Subcontractor shall not be entitled to receive any further payment under this Subcontract until the Work shall be wholly completed to the satisfaction of Contractor, the Owner and the Architect and shall have been accepted by them, at which time, if the unpaid balance of the amount to be paid under this Subcontract shall exceed the cost and expense incurred by Contractor in completing the Subcontract Work, such excess shall be paid by Contractor to the Subcontractor; but if such cost and expense shall exceed such unpaid balance, then Subcontractor shall immediately upon receipt of notice of the amount thereof pay the difference to Contractor. Such cost and expense shall include the cost of completing the Subcontract Work to the satisfaction of Contractor, the Owner and the Architect, and of performing and furnishing all labor, services, materials, equipment, and other items required therefore; a reasonable charge for Contractor's overhead; and all losses, damages, costs and expenses, including legal fees and disbursements sustained, incurred or suffered by reason of or resulting from the Subcontractor's default.

ARTICLE 16
Termination of Prime Contract; Assignment of Subcontract

16.1 Subcontractor's Consent to Assignment. If the Prime Contract provides that upon termination of the Prime Contract, this Subcontract is assigned by the Contractor to the Owner provided the Owner accepts such assignment by notifying the Subcontractor in writing, then the Subcontractor hereby consents to such assignment. In the event the Prime Contract is terminated and the Owner does not accept such assignment, then this Subcontract shall be deemed to be terminated for the Contractor's convenience, pursuant to Article 14 of this Subcontract.

16.2 No Assignment or Subcontracting without the Contractor's Consent. Excepting for the foregoing, the Subcontractor shall not assign this Subcontract, or any amounts due or to become due under this Subcontract, without the written consent of Contractor. Any assignment of this Subcontract, or of monies due or to become due thereunder, without the written consent of the Contractor shall be absolutely void.

ARTICLE 17
Dispute Resolution

17.1 With respect to all disputes involving a direction, ruling or determination of the Owner or Architect or involving an interpretation of the Prime Contract (including, without limitation, the conditions thereof, drawings and specifications), the Subcontractor (a) shall participate in and be bound by the dispute resolution procedures (including, without limitation, the designation of a tribunal and venue) established by the Prime Contract (including any arbitration or other alternate dispute resolution proceedings), and (b) hereby consents to the jurisdiction of any court or other tribunal designated in the Prime Contract, and to service of process and/or notice upon it by mail at the address set forth for the Subcontractor on page 1 of this Subcontract. In the event that an action has been previously commenced by the Subcontractor against Contractor, the Subcontractor agrees to withdraw such action, and participate in any action or proceeding thereafter commenced by Contractor against the Owner and/or Architect. The joinder of additional parties by Contractor or the Owner, or the consolidation of such proceeding with another proceeding, shall in no manner invalidate or limit the provisions of this Article. It is expressly understood that the purpose of this paragraph is to insure consistency in the resolution of disputes arising out of all work at the Project, in the event that Contractor, in its sole and exclusive discretion, commences an action against the owner. In no event shall Contractor be liable to the Subcontractor for Subcontract Work performed or for any other cause whatsoever except to the extent that Contractor may recover therefore, from the Owner. In the event of such a recovery, the amount awarded to Contractor on account of the Subcontractor's claim shall be paid to the Subcontractor less the Subcontractor's proportionate share of the expenses, costs and attorney's fees incurred by Contractor in prosecuting the claim. In addition thereto the Subcontractor's recovery shall be diminished by reasonable overhead and profit mark-up to Contractor.

17.2 Except as provided in Article 17.1, any and all disputes arising out of and/or related to this Subcontract and the performance of the Work at the Project, shall be decided solely in the state court system, in the State of New York and venue in any such action must be placed in the County of New York. This agreement shall be construed in accordance with the laws of the State of New York without any consideration being given to any principles of choice or conflicts of law.

17.3 In no event shall the Contractor be liable to Subcontractor or any of its sub-subcontractors, whether based on delay, contract, tort, negligence, warranty, indemnity, strict liability, error or omission, or otherwise, for any consequential, special, incidental, indirect,

exemplary, multiple or punitive damages or damages arising from or in connection with loss of use or loss of revenue or profit, actual or anticipated or otherwise, and Subcontractor hereby releases the Contractor from any such liability. Subcontractor shall obtain similar releases from each of its subcontractors.

17.4 The Subcontractor expressly waives its right to a jury trial in any and all actions and proceedings against the Contractor.

17.5 Notwithstanding anything to the contrary, express or implied, all claims asserted by the Subcontractor under this Subcontract arising out of or relating to any action or inaction by the Port Authority or any entity or person for which it may be responsible, shall be decided in accordance with the terms and conditions of the Prime Contract, including any choice of law provision required by the Prime Contract.

ARTICLE 18
Freight Charges and Shipment

18.1 In making or ordering shipments, the Subcontractor shall not consign or have consigned materials, equipment or any other items in the name of Contractor. Contractor is under no obligation to make payment for charges on shipments made by or to the Subcontractor but may, at its option, pay such charges, in which case the Subcontractor shall immediately upon presentation for payment reimburse Contractor for the amount of such payment plus a service charge of twenty five (25%) percent of the amount paid.

ARTICLE 19
Patents

19.1 The Subcontractor hereby agrees to indemnify, protect and save harmless Contractor and the Owner from and against any and all liability, loss or damage and to reimburse Contractor and the Owner for any expenses, including legal fees and disbursements, to which Contractor and the Owner may be put because of claims or litigation on account of infringement or alleged infringement of any letters patent or patent rights by reason of the Subcontract Work or materials, equipment or other items used by the Subcontractor in its performance.

ARTICLE 20
Liens

20.1 To the fullest extent permitted by law, the Subcontractor shall not suffer or permit any Mechanic's Lien (collectively and individually "Lien") to remain of record as a claim against the work or the Project or against any monies due or to become due for any work performed on behalf of Subcontractor, or any of its sub-subcontractors or suppliers.

20.2 In the event that any sub-Subcontractor or material suppliers or any party with whom the Subcontractor has entered into a relationship files a Lien, the Subcontractor shall immediately cause same to be discharged, satisfied and/or bonded or the Contractor shall have the right to bond said Lien, or otherwise discharge same and to retain out of any payment then due or thereafter to become due, an amount sufficient to completely indemnify itself and the Owner against such Lien, with interest, together with expense incident to discharging such Lien and the defense of any such suit to enforce such Lien, including any premium charged for any bond and all attorneys' fees, all of which the Subcontractor agrees to pay the Contractor. Should there prove to be any claim by a sub-Subcontractor or supplier or other party with whom the Subcontractor has entered into a relationship to perform any part of work or any additional or extra work after all payments have been made under this Subcontract, the Subcontractor shall refund to the Contractor all monies that the latter may be compelled to pay to discharge and/or in defense of the Lien. Until satisfied or withdrawn, any such lien shall preclude any and all claims or demand for payment whatsoever by the Subcontractor. The Subcontractor agrees to indemnify, defend and save harmless the Contractor and the Owner from and against any and all claims, actions, fines and penalties brought or imposed or judgments rendered thereon, or any loss, damages, liability, costs and expenses including legal fees and disbursements which the Contractor and/or the Owner may sustain or incur as a consequence of the Subcontractor's failure to comply with the terms of this Article.

20.3 The failure of Subcontractor after ten (10) days written demand by Owner or Contractor to satisfy, discharge and/or bond a Lien filed by a sub-Subcontractor or supplier of the Subcontractor, shall constitute a material breach of this Subcontract.

20.4 The Subcontractor shall within ten (10) days of the date of this Subcontract, provide the Contractor with an accurate and full list of the names and addresses of each sub-Subcontractor or supplier or other party with whom it shall contract and who may have a right to file a Lien pursuant to the provisions of law. The obligations of the Subcontractor to comply with the provisions hereof shall be a continuing obligation and the Subcontractor covenants that it shall furnish the name and address of such other sub-Subcontractor and/or supplier or other parties with whom it enters into an agreement hereafter, who may have a right to file a Lien pursuant to the provisions of law.

20.5 If the Subcontractor files a Lien, which is ultimately judged to be invalid or overstates the amount properly subject to a Lien, then the Subcontractor shall in addition to all liabilities resulting from the provisions of the law, be liable to Owner and the Contractor for all bonds, deposits or costs of removal of the invalid Lien and/or the overstated portion of such Lien (including without limitation all attorneys' fees and expenses), and the Subcontractor shall indemnify and save harmless, the Owner and the Contractor harmless from and against all resulting losses and expenses of any kind or nature.

ARTICLE 21
Miscellaneous

21.1 No Delay by Subcontractor. Notwithstanding the fact that a dispute, controversy or question shall have arisen in the interpretation of any provision of this Subcontract regarding the performance of any Work, the delivery of any material, the payment of any monies to Subcontractor, or otherwise, the Subcontractor agrees that it will not directly or indirectly stop or delay any Subcontract Work or part of the Subcontract Work required to be performed, or stop or delay the delivery of any materials required to be furnished hereunder, pending the determination of such dispute or controversy.

21.2 erger. This Subcontract shall constitute the entire agreement between the Contractor and Subcontractor. All prior negotiations, proposals and communications of any kind, whether oral or written, are merged herein and cannot alter the terms and conditions of this Subcontract.

21.3 No Third-Party Beneficiary. Except as expressly provided herein, no provision of this Subcontract shall in any way inure to the benefit of, or create any rights in, any third person (including the public at large) or give rise to any claim or cause of action in any third person.

21.4 No Change Or Waiver Except In Writing. No provisions of this subcontract may be changed except by a writing duly executed by both Contractor and Subcontractor; and no requirement or right under this Subcontract may be waived except in a writing duly executed by the party relinquishing the right. The failure of Contractor to insist in any one or more instances upon a strict compliance with any provision of this Subcontract, or to exercise any option herein conferred, shall not be construed as a waiver or relinquishment of the right of Contractor, thereafter to require compliance with such provision or a waiver of the right of Contractor thereafter to exercise such option, but such provision or option will remain in full force and effect.

21.5 Severability. In the event that any article, paragraph, term or condition of this Subcontract is deemed to be invalid pursuant to any rule, regulation, law, ordinance, code, decision of any court having jurisdiction over the parties or for any reason whatsoever, previously or hereinafter enacted, all other articles, paragraphs, terms or conditions shall be unaffected thereby and remain in full force and effect.

ARTICLE 22
Condition Precedent

22.1 The approval of the Subcontractor by the Owner is a condition precedent to the effectiveness of this Subcontract. If such approval is not received within thirty (30) days of the execution of this subcontract, or if the Subcontractor is expressly disapproved, then this Subcontract shall be null and void as if it had never been executed by the parties.

ARTICLE 23
Subcontract Execution

This Subcontract may be executed in one or more counterparts, including facsimile telecopy or pdf via email, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Facsimile or electronic signatures may be utilized in the execution of this Subcontract. The Parties agree that facsimile or electronic signatures are binding in the same manner as original signatures.

IN WITNESS WHEREOF, the parties have caused this Subcontract to be executed by their duly authorized representatives as of the date first below written.

Subcontractor Elli NY Design Corp.	**VRH Construction Corp.**
Signed	Signed
Print Name Lissette Oliva	Print Name Kevin M. Curran
Title Chief Executive officer	Title Project Manager
Date 03/24/2026	Date 3/25/26

VRH Aviation Construction Specialists

Scope Review Checkl
Exhibit A

Project: Turkish Airlines CIP Lounge T1

CSI Code 06400000 Architectural Woodwork

Subcontractor Elli NY Design Corp.

Contact: Estimating Estimating

Phone Number (718) 418-9002

Bid Amount $ 1,118,850.00

Bond: $ 0.00

Sales Tax: $ 0.00

Schedule:

Alternates

1.
2.
3.
4.
5.

Unit Prices

1.
2.
3.
4.
5.

Markup For Additional Work

1. Subcontractors (Self-Performed	10.00 %
2. Sub -subcontractors	5.00 %
3. Subcontractors (Supervision-Onl	5.00 %
4. Total Markup	10.00 %

Contract Documents

See attached **DOCUMENT LOG** for further information.

General Scope Of Work

Item	Yes	No	Comments
1 Subcontractor to provide all necessary labor, materials, equipment, tools, and appurtenances as required to furnish and install all work in accordance with contract documents and in strict accordance with the prime contract. Where Subcontractor's specific work as set forth in the contract documents is not described in this document, Subcontractor agrees to perform all work normally construed to come within the scope of its work activities, applicable building codes, and or union jurisdictions. ******** REVIEW PROJECT DRAWING LOG ********	X ✓		
2 Subcontractor shall abide by project union agreements. All union jurisdictional claims shall be brought to the attention of VRH and will be amicably resolved by the Subcontractor of record without added compensation.	X ✓		
3 All work will be in accordance with local, state and federal laws and regulations, including PANY/NJ, where applicable.	X ✓		
4 Subcontractor has reviewed complete drawings and specifications including general and/or special conditions, and assumes responsibility for all requirements that pertain to his work.	X ✓		
5 Subcontractor includes and acknowledges all addendum changes and/or RFIs as issued by VRH.	X ✓		
6 Subcontractors and Vendors are capable of financing their own construction activities and commitments. Manufacturer and supplier payment terms are included in your proposal and are subject to standard payment terms as outlined in our Standard Form of Agreement.	X ✓		
7 Subcontractor will comply with equal employment opportunity provisions of contract and as outlined in the Instructions to Bidders.	X ✓		
8 Subcontractor agrees to the insurance requirements set forth in the Instructions to Bidders received on this project or in absence thereof, in accordance with the attached sample certificate of insurance. A project specific sample certificate evidencing coverages described above must be reviewed at this time. Insurance limits if different than VRH standard should be noted in the comments field.	X ✓		
9 Subcontractor has reviewed VRH Subcontract Agreement including Terms & Conditions. (Document may not be provided prior to project award)	X ✓		

General Scope Of Work

Item	Yes	No	Comments
10 Subcontractor will adhere to the Site Specific Safety and Security Plan which includes the Project Safety Rules, the VRH Health and Safety Program and OSHA including but not limited to the following elements: - Subcontractor employees will attend a 1 Hr. Safety Orientation before commencing work on the site. - Subcontractor employees will be issued a project specific identification badge. - Subcontractor employees will perform/attend weekly Toolbox Talk. - Subcontractor supervisory personnel will perform Hazard Assessment in conjunction with VRH prior to the start of work. - Subcontractor supervisory personnel will report all accident/injuries to VRH to submit written accident report within 48 hours.	X ✓		
11 Subcontractor will provide a copy of their own Health and Safety Program to VRH prior to commencing work, if required.	✓		
12 Subcontractor agrees to perform all work in accordance with VRH Project Schedule. Subcontractor to provide the following data: - Duration (in days) for Shop Drawing submission 30 DAYS - Duration (in days) for Material Procurement and Fabrication 16 weeks - Duration (in days) for Installation/Erection 8 weeks Subcontractor will produce and maintain a progress schedule based upon the durations mutually established above. Subcontractor includes all installations on normal work hours unless directed otherwise and understands site access, security issues and field conditions as claims for lost time or inefficiencies will not be considered unless there are extenuating circumstances immediately brought to the attention of VRH supervisory personnel.	X ✓		
13 Subcontractor is required to provide Unit Prices, Total Anticipated Labor Hours, Labor Rates (including associated backup from the respective unions if required) and Material Cost expected to complete scope of work. Unit Prices: _____ Labor Hours: 1,800 HRS APPROX. Labor Cost: $335,655.00 . Material Cost: $783,195.00 .	X ✓		
14 Within two weeks of contract award, Subcontractor to provide a Schedule of Value trade breakdown for review, negotiation, and acceptance.	✓		
15 Subcontractor agrees to Retainage per VRH Subcontract Agreement. Retainage payment to be issued when VRH receives retainage payment from project owner.	✓		
16 Subcontractor verifies that they have included all escalation costs as required to complete the project in accordance with project schedule. No adjustments will be made at a later date.	✓		
17 Subcontractor has included premium time required by schedule, if applicable.	✓		
18 Subcontractor will include applicable sales tax.	✓		
19 Subcontractor agrees to provide shop drawings and submittals for all equipment and material required to be furnished in accordance with specifications/ contract drawings and or the Initial Submittals Log when provided by VRH.	X ✓		
20 Subcontractor will provide As-Built drawings and closeout documents in accordance with specifications.	✓		
21 Subcontractor will inspect site.	✓		
22 Subcontractor will do layout, line and grade for own work, including all required surveying to ensure proper installation of new equipment. Should there be any deviations beyond acceptable tolerances it must be brought to the attention of VRH prior to start of installation. VRH to provide control points.	✓		
23 Provide hoisting for own work unless otherwise noted.	✓		
24 Following contract award and prior to start of work subcontractor supervisory personnel will be required to attend a Pre-Mobilization Meeting in accordance with the VRH Project Quality Control Program (QCP) to review and discuss implementation and execution of the work including but not limited to Security, Safety, Schedule, Submittals, Site logistics, Coordination, Quality Assurance/Quality Control and Inspections.	X ✓		

General Scope Of Work

Item	Yes	No	Comments
25 Subcontractor will have full-time Foreman/Superintendent/Project Manager - competent person on site at all times when work is being performed or as required. Subcontractors Project Manager and/or Superintendent will attend weekly meetings with VRH Project Manager to discuss work in progress and one (1) week look ahead schedule.	X ✓		
26 Normal working hours are 7:00AM - 3:30PM.	✓		
27 Controlled inspections to be performed by others unless otherwise noted. Subcontractor is to comply with testing agency to allow access to site, materials, etc. for testing. Any and all work deemed to be defective as a result of testing, Architect/Engineers inspection and/or inspection by VRH, Owner or Authorities shall be replaced immediately upon request, the sole cost of which shall be borne by Subcontractor.	X ✓		
28 Subcontractor includes all work per drawings and specifications. Substitutions and value engineering of a product may be made where allowed per the drawings and specifications if a bidder considers the substitute product "an equal" to the product specified. All substitutions are subject to the Architect's approval. Any substitution requested that results in a change of total project LEED points/ credits will not be considered. Inability to obtain specified items due to Subcontractor's failure to place timely orders will not be considered reason for authorizing substitutions. Subcontractor to review drawings for accuracy. Any coordination discrepancies between Architectural and MEP's shall be brought to the attention of VRH by written RFI. If not, resolution of discrepancies shall be at sole judgement of Architect.	X ✓		
29 There are no provisions for employee or supervisory personnel parking on the site unless otherwise noted. The public parking lots must be used for this purpose. Only those vehicles which are required for performing construction activities will be permitted access to the site.	X ✓		
30 The use of gas or diesel powered equipment indoors is prohibited.	✓		
31 For rubbish removal, Subcontractor will pile into container as located or into dirt chute provided by General Contractor.	✓		CENTERPILE
32 **********	✓		
33 SUSTAINABILITY AND GREEN BUILDING PRACTICE:	✓		
34 VRH generated waste management plan must be adhered to by subcontractor.	✓		
35 Excessive equipment idling is to be avoided including delivery vehicles.	✓		
36 Review all LEED project requirements and submit product data etc. for review and approval.	✓		
37 Water use by all contractors will be monitored for waste. Any leaking hoses must be repaired immediately.	✓		
38 Submit and provide FSC wood where possible.	✓		
39 Submit and provide low VOC materials.	✓		
40 Dust and airborne particle control must be exercised by this subcontractor.	✓		
41 Where possible/feasible, source materials within a 500 mile radius of work site.	✓		
42 VRH encourages the use of prefabrication techniques on all projects. If this subcontractor is pre fabricating component assemblies please specify: _____	✓		
43 **********	✓		
44 DIVERSITY AND INCLUSION:	✓		
45 If Subcontractor is providing state or federally certified Minority, Women Owned Enterprise, and/or Service-Disabled Veteran-Owned Business participation, please indicate below: MBE: Percentage of Contract M/WBE 100% Total Value 1,118,850.00 WBE: Percentage of Contract _____ Total Value _____ SDVOB: Percentage of Contract _____ Total Value _____ (If Subcontractor is not a certified state or federal MWBE company, 100% of Second Tier Subcontractor and 60% of Second Tier Material Suppliers/Vendors cost can contribute to VRH's MWBE participation goal. Please indicate above if applicable.)	X ✓		

General Scope Of Work

Item		Yes	No	Comments
46	Each Subcontractor must make best effort to maintain a minimum of 30% Minority and 7% Female participation for the work force in skilled trades and 40% Minority and 7% Female participation for the work force in unskilled trades or as specified in the Instructions to Bidders. Per the PANY/NJ, the Subcontractor will be responsible to submit a "Monthly Employment Utilization Report" for each month work is performed with their requisition.	X ✓		
47	Local Business Enterprise (LBE) participation on this project is essential. This contractor/ vendor is required to make Good Faith Effort to engage LBE firms for all subcontractor or 2nd Tier opportunities in this contract and or purchase materials, supplies, services, and rental equipment from local vendors, as determined by the state or federal governing agency and based on the location of this project. A list of Towns and Zip Codes for this project are included in Exhibit L of the project documents.	X ✓		

Trade General Scope Of Work for - 06400000

Item		Yes	No	Comments
1	Provide materials that comply with ANSI standard for each type of woodwork.	✓		
2	Verify field measurements and conditions for final shop drawings prior to fabrication.	✓		
3	Install woodwork plumb, level, true and straight with no distortions and in accordance with ANSI standard.	✓		
4	Scribe and cutwork to fit adjoining work or surface.	✓		
5	Furnish fire retardant substrate and finish material in accordance with specifications.	✓		
6	Furnish all necessary grounds, blocking, backboards clips and incidentals as required for installation.	✓		
7	Furnish all fasteners, anchors, brackets and supports.	✓		
8	Protection of millwork until installation is complete.	✓		
9	Furnish and install finish hardware as specified.	✓		
10	Exercise care with removal of spray on fireproofing. Excessive removal beyond 2" will not be permitted. Costs to repair any areas beyond 2" will be borne by this contractor.	✓		
11	Should this subcontractor consider assigning any portion of the work included in this contract to a sub-subcontractor ample notice must be provided and written consent from the contractor may be required, should approval be granted then all terms and conditions of the contract will apply to the sub-subcontractor including evidence of satisfactory insurance as well as M/WBE participation. Failure to comply with these conditions may be grounds for termination or voiding the contract as delineated in the terms and conditions. Please list the trade(s) which you are considering awarding a subcontract: _____ _____ _____	X ✓		
12	Include OSHA & Port Authority safety rules & regulations.	✓		
13	Provide temporary protection as required for this Trade.	✓		
14	Include coordination with other trades as required.	✓		
15	Subcontractor is responsible for testing, adjusting and cleaning of installed equipment.	✓		
16	Subcontractor will provide core drilled penetrations and all sealing/fire stopping as required by contract documents and/or building codes.	X	X	N/A
17	Subcontractor will provide sleeves and inserts as required for own work.	✓		
18	Subcontractor is responsible for patching caused by Subcontractor's errors.	✓		Type text here
19	Subcontractor will obtain and keep current the necessary welding and burning permits when/ if required by all agencies having jurisdiction over the project.	X	X	N/A

Trade Detailed Scope Of Work for - 06400000

Item	Drawing/Deta	Yes	No	Comments
1 Union labor rates only. Prevailing Wage and Certified Payroll Required. Project Labor Agreement Applies		X		
2 Landside Project until June of 2026. Project will go airside in June 2026. Escorts are by VRH.		X		
3 Normal working hours 7:00 a.m. to 3:30 p.m. unless otherwise noted.		X		
4 Regular Insurance.		X		
5 Capital Improvement.		X		
6 Meet Port Authority 20% MBE & 10% WBE requirements.		X		
7 On-Site Parking not available - AECOM offers free offsite parking for workers at Remote Location		X		
8 Reviewed all Construction documents.		X		
9 Project Schedule is December 2025 through June 2026. Include all escalation.		X		
10 Include OSHA & Port Authority safety rules & regulations.		X		
11 SWAC or SIDA, OSHA 30 and SST is required for all workers on Site. AECOM Safety Orientation is required for All Workers		X		
12 Provide temporary protection as required.		X		
13 Provide on-site Supervision as required.		X		
14 Include verification of field conditions.		X		
15 Provide layout of work by this trade.		X		
16 Include coordination with other trades as required.		X		
17 All coordination and shop drawings shall be developed in BIM.		X	X	NIC
18 Labor clean-up to center pile - Dumpsters provided by others.		X		
19 Provide shop drawings, submittals and samples per specifications.		X		
20 Testing and Inspections per Specifications.		X		
21 Provide all warranties, close-out documents and manuals.		X		
22 Comply with Site Specific Safety Plan.		X		
23 LEED Silver Project w/ Formal Commissioning Required.		X		
24 All workers to obtain AECOM Construction Badge before coming on site. Training, OSHA 30, SST, and SWAC or SIDA are required to obtain badge.		X		
25 All hoisting of materials will be via Freight elevator. Oversize products will need to be boomed into the building. All supplemental rigging costs will be borne by Subcontractor.		X		
26 Subcontractors shall provide their own labor to load materials into the building via freight.		X		
27 All work at 2nd Floor Elevator Lobby shall be performed off hours		X		
28 Provide testing and inspection per AHJ and applicable Code		X		
29 Provide as-built BIM model updates to current model upon completion of your work		X		
30 Provide slab coring and other penetrations for your work		X		
31 Comply with LEED and Sustainable building requirements per the Drawings and PANYNJ protocols		X		
32 Provide ladders, scaffolding and lifts for your work		X		
33 All Wood shall be FSC Certified per Architectural Finish Manual and Furniture Package Manual		X		
34 Provide wood veneer at Column Enclosures. GFRG, Framing, and Gyp Board are by Drywall Sub.		X		QTY: 9 Column Enclosures
35 Provide Metal Kickplate at Column Bases		X		At columns with veneer enclosures only
36 Provide add Alt for GFRG, Framing, and Gyp Board at Column Enclosures		X	X	GFRG, FRAMING & GYP BOARD - NIC
37 Stone countertops and stone wall panels are provided by Others.		X		
38 All Metal Base at Millwork shall be included by Millwork Subcontractor		X		
39 Provide Wooden Baseboard at Prayer Rooms		X		Rooms #2 Male & #3 Female
40 Provide Arrival Desks complete including Metal Foot Rail		X		Exclusions: Stone Electrical, lighting.
41 Provide Scotch Bar complete		X		Exclusions: Electrical, plumbing, stone, food serv.
42 Provide Finished Steel Canopy above Scotch Bar		X		Exclusions: Electrical,Monitors, appliances, lights
43 News Wall Cladding will be performed by Others		X		

Trade Detailed Scope Of Work for - 06400000

Item	Drawing/Deta	Yes	No	Comments
44 Provide Show Kitchen complete including base. Open Kitchen #22		X		Inclusions: Wood Studs die wall, subtops, Wood panels, mtl base
45 Provide Restroom Vanity Base and Counters. Include all support Brackets		X		Exclusions: In-wall supports, plumbing fixtures (sink
46 Provide Solid Surface Urinal Screen with Support Brackets		X	X	this is NIC
47 Provide Custom Mirror Cabinets at Restrooms and Shower Rooms		X		RM #6 & #9 - QTY (1) EACH | RMs #36 & #38 - qty (3) each. All other custom mirrors by others
48 Provide Buffets Complete		X		Exclusions: FS/Equipment, stone, plumbing, glazing, engineering
49 Provide Working Desks and Bench		X		9&11/AE5-00-06 & 1/AE4-00-11 | Wall Panel NIC
50 Provide Custom locker unit including Glass, Acrylic panels and integral Lighting		X		Exclusions: light fixture & electrical
51 Provide Pony Wall Separators		X		Qualified: Wood veneer, Wood studs & Wood cap
52 Provide Makeup Unit at Female Restroom		X		Exclusions: Lighting, electrical, & mirrors at this location
53 Provide Shoe Cabinets at Ablution Rooms		X		Exclusions: light fixture & electrical
54 All finishes shall Match Architects Color Samples		X		
55 Provide mockups and large scale samples for review and approval for all Finishes		X		

Negotiation Summary

Phone conversations between Kevin (VRH) and Tomasz (Elli)

Negotiated Contract Amount **$ 1,118,850.00**

Date: 12/18/2025

Subcontractor: Elli NY Design Corp.	VRH CONSTRUCTION
Signed:	Signed:
By: Estimating Estimating	By: Kevin M. Curran
Title: V. President	Title: Project Manager
Date: 3/24/2026	Date: 3/25/26

EXCLUSIONS:

- Any Scope in "Circulation Primary Boarding"
- Any Scope in "Circulation Secondary Boarding"
- Electrical
- Lighting Fixtures.
- Plumbing Fixtures
- Appliances.
- Food Service
- Equipment
- Stone countertops & paneling
- Raised Floors
- Wall Paper finishes
- Metal Paneling
- Metal Base not attached / integral to millwork
- Glazing - Sneeze guard & all other glass.
- Engineering
- Shower Benches / All other benches not listed within the scope of work.

VRH Construction T
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320 Grand Avenue
Englewood, NJ 07631-4355

Document List

Client Turkish Airlines Inc.	Project No.: 4861
Project: Turkish Airlines CIP Lounge T1	Date: 12/30/2025
Estimate Name	Sheet 1 of 5

Document Number	Document Title	Document	Revision Date	Revision Number	Document Recv'd	Document Notes
Architectural Drawings						
G00-00-01	GENERAL INFORMATION PROJECT DRAWING INDEX	09/29/25				
G00-00-02	GENERAL INFORMATION PROJECT INFORMATION	09/29/25				
G00-00-03	GENERAL INFORMATION PROJECT INFORMATION	09/29/25				
G01-00-01	GENERAL INFORMATION LIFE SAFETY PLAN	09/29/25				
G01-00-02	GENERAL AREA PLAN -CONCOURSE	09/29/25				
G01-00-03	GENERAL AREA PLAN -LOUNGE	09/29/25				
AE4-00-06	ARCHITECTURAL LARGE SCALE VIEWS -PRAYER ROOMS	09/29/25				
AD1-01-00	ARCHITECTURAL DEMOLITION FLOOR PLAN	09/29/25				
AD1-01-02	ARCHITECTURAL DEMOLITION CEILING PLAN	09/29/25				
AD1-01-03	ARCHITECTURAL DEMOLITION ENLARGED	09/29/25				
AE1-01-01	ARCHITECTURAL FLOOR PLAN SECOND FLOOR	09/29/25				
AE1-01-02	ARCHITECTURAL FLOOR PLAN THIRD FLOOR	09/29/25				
AE1-R1-01	ARCHITECTURAL ROOF PLAN	09/29/25				
AE3-00-01	ARCHITECTURAL BUILDING SECTIONS	09/29/25				
AE3-00-02	ARCHITECTURAL BUILDING SECTIONS	09/29/25				
AE4-00-01	ARCHITECTURAL LARGE SCALE VIEWS -KITCHEN	09/29/25				
AE4-00-02	ARCHITECTURAL LARGE SCALE VIEWS - KITCHEN	09/29/25				
AE4-00-03	ARCHITECTURAL LARGE SCALE VIEWS -RESTROOM	08/29/25				
AE4-00-04	ARCHITECTURAL LARGE SCALE VIEWS -RESTROOM	09/29/25				
AE4-00-05	ARCHITECTURAL LARGE SCALE VIEWS -SCOTCH BAR	09/29/25				
AE4-00-07	ARCHITECTURAL LARGE SCALE VIEWS - SHOWER ROOMS	09/29/25				
AE4-00-08	ARCHITECTURAL LARGE SCALE VIEWS -LOUNGE ENTRANCE	09/29/25				
AE4-00-09	ARCHITECTURAL LARGE SCALE VIEWS -ARRIVAL DESK	09/29/25				
AE4-00-10	ARCHITECTURAL LARGE SCALE VIEWS -GLASS PARTITIONS	09/29/25				
AE4-00-11	ARCHITECTURAL LARGE SCALE VIEWS -HIGH TOP WORK COU	09/29/25				
AE4-00-12	ARCHITECTURAL LARGE SCALE VIEWS - ILLUMINATED GLAS	09/29/25				

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Document Number	Document Title	Document	Revision Date	Revision Number	Document Recv'd	Document Notes
AE4-00-13	ARCHITECTURAL LARGE SCALE VIEWS - BUFFETS	09/29/25				
AE4-00-14	ARCHITECTURAL LARGE SCALE VIEWS - ARRIVAL EXPERIEN	09/29/25				
AE4-00-15	ARCHITECTURAL LARGE SCALE VIEWS -LOCKERS	09/29/25				
AE4-00-16	ARCHITECTURAL LARGE SCALE VIEWS -CONCOURSE FACING	09/29/25				
AE4-00-17	ARCHITECTURAL LARGE SCALE VIEWS -ELEVATOR CABS AND	09/29/25				
AE5-00-01	ARCHITECTURAL DETAILS -FLOOR	09/29/25				
AE5-00-02	ARCHITECTURAL DETAILS - GLAZING SYSTEMS	09/29/25				
AE5-00-04	ARCHITECTURAL DETAILS - CEILING	09/29/25				
AE6-01-01	ARCHITECTURAL CEILING PLAN SECOND FLOOR	09/29/25				
AE6-01-02	ARCHITECTURAL CEILING PLAN THIRD FLOOR	09/29/25				
AE6-01-03	ARCHITECTURAL CEILING PLAN THIRD FLOOR PANEL TYPE	09/29/25				
AE6-01-04	ARCHITECTURAL CEILING PLAN THIRD FLOOR LAYOUT - PA	09/29/25				
AE6-01-05	ARCHITECTURAL CEILING PLAN THIRD FLOOR LAYOUT - PA	09/29/25				
AE7-00-01	ARCHITECTURAL SCHEDULES	09/29/25				
AF1-01-00	ARCHITECTURAL FLOOR TREATMENT DIAGRAM	09/29/25				
AO0-00-01	ARCHITECTURAL GENERAL INFORMATION	09/29/25				
AO0-00-02	ARCHITECTURAL WALL TYPES	09/29/25				
AS1-00-00	ARCHITECTURAL SITE PLAN	09/29/25				
A-CVR	COVER	09/29/25				
Electrical Drawings						
EG1-01-01	ELECTRICAL GROUNDING PLAN LOUNGE AREA	09/29/25				
EG5-00-01	ELECTRICAL GROUNDING DETAILS	09/29/25				
EL1-01-03	ELECTRICAL LIGHTING PLAN - LOUNGE	09/26/25				
EL4-00-01	ELECTRICAL LIGHTING LARGE SCALE VIEWS	09/26/25				
EL5-00-01	ELECTRICAL LIGHTING DETAILS	09/26/25				
EL5-00-02	ELECTRICAL LIGHTING DETAILS	09/26/25				
EL7-00-01	LUMINAIRE SCHEDULE	09/26/25				
EL7-00-02	LIGHTING CONTROL SEQUENCE OF	09/26/25				

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Document Number	Document Title	Document	Revision Date	Revision Number	Document Recv'd	Document Notes
EL8-00-01	ELECTRICAL LIGHTING CALCULATIONS	09/26/25				
EO0-00-01	ELECTRICAL SYMBOLS LIST AND ABBREVIATIONS	09/29/25				
EO0-00-02	ELECTRICAL GENERAL NOTES	09/29/25				
EP1-01-01	ELECTRICAL POWER PLAN LOUNGE AREA	09/29/25				
EP3-00-01	ELECTRICAL SECTIONS	09/29/25				
EP4-00-01	ELECTRICAL POWER LARGE SCALE VIEWS	09/29/25				
EP5-00-01	ELECTRICAL POWER DETAILS	09/29/25				
EP5-00-02	ELECTRICAL POWER DETAILS	09/29/25				
EP5-00-03	ELECTRICAL POWER DETAILS	09/29/25				
EP7-00-01	ELECTRICAL POWER PANEL BOARD SCHEDULES	09/29/25				
EP7-00-02	ELECTRICAL POWER PANEL BOARD SCHEDULES	09/29/25				
EP8-00-01	ELECTRICAL POWER SINGLE LINE DIAGRAM	09/29/25				
ER1-01-01	ELECTRICAL RACEWAY PLAN LOUNGE AREA	09/29/25				
Fire Alarm						
FA0-00-01	FIRE DETECTION AND ALARM SYMBOL LIST AND GENERAL N	09/29/25				
FA1-01-02	FIRE DETECTION AND ALARM PLAN THIRD FLOOR THY LOUN	09/29/25				
FA8-00-01	FIRE DETECTION AND ALARM DIAGRAMS	09/29/25				
Fire Protection						
FX0-00-01	FIRE SUPPRESSION GENERAL INFORMATION	09/26/25				
FX1-01-00	FIRE SUPPRESSION PLAN FIRST FLOOR COMPOSITE	09/26/25				
HVAC Drawings						
MH1-01-01	MECHANICAL HVAC LEVEL 2 PARTIAL FLOOR PLANS	09/29/25				
MH1-01-02	MECHANICAL HVAC LEVEL 3 LOUNGE FLOOR PLAN	09/29/25				
MH3-00-01	MECHANICAL HVAC SECTIONS	09/29/25				
MH3-00-02	MECHANICAL HVAC SECTIONS	09/29/25				
MH4-00-01	MECHANICAL HVAC LARGE SCALE VIEWS	09/29/25				
MH5-00-01	MECHANICAL HVAC DETAILS	09/29/25				
MH5-00-02	MECHANICAL HVAC DETAILS	09/25/25				
MH7-00-01	MECHANICAL HVAC SCHEDULES	09/29/25				

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Document Number	Document Title	Document	Revision Date	Revision Number	Document Recv'd	Document Notes
MH7-00-02	MECHANICAL HVAC SCHEDULES	09/29/25				
MH9-00-01	MECHANICAL HVAC ISOMETRICS	09/29/25				
MI1-01-01	MECHANICAL INSTRUMENTATION LEVEL 3 TEMPERATURE ZON	09/29/25				
MI8-00-01	MECHANICAL INSTRUMENTATION DIAGRAMS	09/29/25				
MO0-00-01	MECHANICAL GENERAL INFORMATION	09/29/25				
MP1-01-01	MECHANICAL PIPING LEVEL 3 LOUNGE FLOOR PLAN	09/29/25				
MP5-00-01	MECHANICAL PIPING DETAILS	09/29/25				
MP9-00-01	MECHANICAL PIPING ISOMETRICS	09/29/25				
Interior Design						
IE1-00-01	INTERIOR DESIGN MATERIALS LEGEND	09/29/25				
IE1-00-02	INTERIOR DESIGN MATERIALS SCHEDULE	09/29/25				
IE1-01-00	INTERIOR DESIGN PLAN SECOND FLOOR	09/29/25				
IE1-01-01	FLOOR FINISH PLAN THIRD FLOOR	09/29/25				
IE1-01-02	WALL FINISH PLAN THIRD FLOOR	09/29/25				
Plumbing Drawings						
PO0-00-01	PLUMBING GENERAL INFORMATION	09/29/25				
PP1-01-00	PLUMBING PLAN FIRST FLOOR COMPOSITE	09/29/25				
PP4-00-01	PLUMBING LARGE SCALE VIEWS	09/29/25				
PP7-00-01	PLUMBING SCHEDULES	09/29/25				
PP8-00-01	PLUMBING RISER DIAGRAMS	09/29/25				
PP8-00-02	PLUMBING RISER DIAGRAMS	09/29/25				
Structural Drawings						
SF1-01-01	STRUCTURAL FLOOR PLAN THIRD FLOOR	09/29/25				
SF5-00-01	STRUCTURAL DETAILS	09/29/25				
Technology						
TN0-00-01	TELECOM DATA NETWORKS SYMBOLS LIST AND GENERAL	09/29/25				
TN0-00-02	TELECOM DATA NETWORKS SCHEDULES AND MATRICES	09/29/25				
TN1-01-01	TELECOMMUNICATIONS DATA NETWORKS PLAN SECOND FLOOR	09/29/25				
TN1-01-02	TELECOMMUNICATIONS DATA NETWORKS PLAN THIRD FLOOR	09/29/25				

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TN1-01-03	TELECOMMUNICATIONS DATA NETWORKS PLAN THIRD FLOOR	09/29/25				
TN4-00-01	TELECOMMUNICATIONS ENLARGED PLANS	09/29/25				
TN5-00-01	TELECOMMUNICATIONS DATA NETWORKS DETAILS	09/29/25				
TN5-00-02	TELECOMMUNICATIONS DATA NETWORKS BONDING DETAILS	09/29/25				
TN5-00-03	TELECOMMUNICATIONS DATA NETWORKS DETAILS	09/29/25				
TN8-00-01	TELECOMMUNICATIONS DATA NETWORKS DIAGRAMS	09/29/25				
Specification						
NO PACKAGE NAME						
Volume 01	Division 01-12	08/29/25				
Volume 02	Division 21-28	08/29/25				
Architectural Finishes Materi	ARCHITECTURAL FINISHES MATERIALS PACKAGE	08/07/25				
Furniture Package	Furniture Package	07/23/25				
Project Labor Agreement	JFK Terminal One PLA	12/18/19				
Door Package	Door Package	07/23/25				
Sanitary Package	Sanitary Package	07/23/25				
Food Service Equipment List	Food Service Equipment List	10/30/25				

CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY): 1/21/2026

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must have ADDITIONAL INSURED provisions or be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER
SterlingRisk
135 Crossways Park Drive
P.O. Box 9017
Woodbury NY 11797

License#: BR-1418528

CONTACT NAME: Jess Casey
PHONE (A/C, No, Ext): 516-487-0300 **FAX (A/C, No):** 516-487-0372
E-MAIL ADDRESS: request@sterlingrisk.com

INSURER(S) AFFORDING COVERAGE	NAIC #
INSURER A : Utica Mutual Insurance Company	25976
INSURER B : Republic-Franklin Ins. Co.	12475
INSURER C : Utica National Ins Co of Ohio	13998
INSURER D :	
INSURER E :	
INSURER F :	

INSURED
Elli New York Design Corp.
50-01 Metropolitan Ave
Ridgewood NY 11385

ELLINEW-01

COVERAGES **CERTIFICATE NUMBER:** 2058058480 **REVISION NUMBER:**

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDL INSD	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS	
A	X COMMERCIAL GENERAL LIABILITY	Y	Y	CPP 5415164	12/3/2025	12/3/2026	EACH OCCURRENCE	$ 1,000,000
	CLAIMS-MADE X OCCUR						DAMAGE TO RENTED PREMISES (Ea occurrence)	$ 100,000
	X Contractual Liab						MED EXP (Any one person)	$ 5,000
	GEN'L AGGREGATE LIMIT APPLIES PER:						PERSONAL & ADV INJURY	$ 1,000,000
	POLICY X PRO-JECT LOC						GENERAL AGGREGATE	$ 2,000,000
	OTHER:						PRODUCTS - COMP/OP AGG	$ 2,000,000
								$
B	AUTOMOBILE LIABILITY	Y		5544971	12/3/2025	12/3/2026	COMBINED SINGLE LIMIT (Ea accident)	$ 1,000,000
	X ANY AUTO						BODILY INJURY (Per person)	$
	OWNED AUTOS ONLY / SCHEDULED AUTOS						BODILY INJURY (Per accident)	$
	X HIRED AUTOS ONLY / X NON-OWNED AUTOS ONLY						PROPERTY DAMAGE (Per accident)	$
								$
C	X UMBRELLA LIAB X OCCUR	Y	Y	CULP 5415165	12/3/2025	12/3/2026	EACH OCCURRENCE	$ 7,000,000
	EXCESS LIAB CLAIMS-MADE						AGGREGATE	$ 7,000,000
	DED RETENTION $							$
A	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY Y / N	N / A		4683383	12/3/2025	12/3/2026	X PER STATUTE OTH-ER	
	ANYPROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? Y						E.L. EACH ACCIDENT	$ 1,000,000
	(Mandatory in NH) If yes, describe under DESCRIPTION OF OPERATIONS below						E.L. DISEASE - EA EMPLOYEE	$ 1,000,000
							E.L. DISEASE - POLICY LIMIT	$ 1,000,000

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)

Re: Project Number: 4861-007S, Turkish Airlines, Ghafari.

VRH Construction Corp. The Contractor, Owner, Port Authority and any others required by the Contract Documents as additional insureds with respect to General Liability as per endorsement forms CG2038 (12/19) & CG2040(12/19) and as respect to Automobile Liability as per endorsement form CA2-48s to the extent provided therein. Insurance is Primary and Non-Contributory as respects to General Liability as per endorsement form CG2001. Waiver of subrogation is included as respects to General Liability as per endorsement form CG2404. Umbrella follows form.

CERTIFICATE HOLDER

VRH Construction Corp.
Attn: PROJADMIN@VRHCORP.COM
320 GRAND AVENUE
ENGLEWOOD, NJ 07631

CONFORMS TO VRH INSURANCE REQUIREMENTS
J.T.

CANCELLATION

SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.

AUTHORIZED REPRESENTATIVE

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POLICY NUMBER: 5544971

COMMERCIAL AUTO
CA 20 48 02 99

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

DESIGNATED INSURED

This endorsement modifies insurance provided under the following:

BUSINESS AUTO COVERAGE FORM
GARAGE COVERAGE FORM
MOTOR CARRIER COVERAGE FORM
TRUCKERS COVERAGE FORM

With respect to coverage provided by this endorsement, the provisions of the Coverage Form apply unless modified by this endorsement.

This endorsement identifies person(s) or organization(s) who are "insureds" under the Who Is An Insured Provision of the Coverage Form. This endorsement does not alter coverage provided in the Coverage Form.

This endorsement changes the policy effective on the inception date of the policy unless another date is indicated below.

Endorsement Effective:
10/24/2025

Countersigned By:

Named Insured:
ELLI NEW YORK DESIGN CORP

(Authorized Representative)

SCHEDULE

Name of Person(s) or Organization(s):

ALL PERSON(S) OR ORGANIZATION(S) WITH WHICH YOU HAVE WRITTEN CONTRACTS IN PLACE PRIOR TO LOSS REQUIRING THAT THEY BE NAMED AS ADDITIONAL INSUREDS UNDER THIS POLICY

(If no entry appears above, information required to complete this endorsement will be shown in the Declarations as applicable to the endorsement.)

Each person or organization shown in the Schedule is an "insured" for Liability Coverage, but only to the extent that person or organization qualifies as an "insured" under the Who Is An Insured Provision contained in **Section II** of the Coverage Form.

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THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

COMMERCIAL AUTOMOBILE EXTENSION ENDORSEMENT

This endorsement modifies insurance provided under the following:

COMMERCIAL AUTOMOBILE COVERAGE PART

Only that insurance provided below that broadens coverage under the Commercial Auto Coverage Part applies.

A. Fellow Employee Exclusion Exception

The following modification applies on an excess basis over any other insurance.

Exclusion **5.** (Fellow Employee) of SECTION **II** - LIABILITY COVERAGE is replaced by the following:

5. "Bodily injury" to any fellow employee of the "insured" arising out of and in the course of the fellow employee's employment.

But this exclusion does not apply to "bodily injury" to any fellow employee which results from the use of a covered "auto" you own or hire.

B. Increased Supplementary Payments

The amount we will pay for the cost of bail bonds and for reasonable expenses incurred by the "insured" under the Supplementary Payments Coverage Extension of SECTION **II** - LIABILITY COVERAGE is increased to $2,500 and $300 respectively.

C. Automatic Hired Auto Physical Damage Coverage

1. Subject to **2.** and **3.** below, the broadest of the Physical Damage Coverages provided under this Coverage Part for "autos" you own are also provided for hired "autos" which are covered for Liability Coverage under this Coverage Part.

2. The most we will pay for "loss" in any one "accident" is the lesser of:

a. The actual cash value of the damaged or stolen property as of the time of the "loss";

b. The cost of repairing or replacing the damaged or stolen property with other property of like kind and quality; or

c. $35,000.

3. As respects the Physical Damage Coverage provided for hired "autos" under this Coverage Extension, our obligation to pay for, repair, return or replace damaged or stolen property will be reduced by the largest deductible for such coverage applicable to any owned covered "auto." In the event of "loss" caused by fire or lightning, no deductible shall apply.

D. Leased Auto Additional Legal Obligation Coverage

The following coverage is added to SECTION **III** - PHYSICAL DAMAGE COVERAGE:

For any covered "auto" for which this Coverage Form includes a lessor as an additional "insured" under the Additional Insured - Lessor endorsement, we will pay your additional "legal obligation" to such lessor in the event of a total "loss."

As used in this coverage, "legal obligation" shall mean and be the difference between the amount owed on your lease and the actual cash value of the "auto." The amount owed on your lease shall not include any taxes; overdue payments or interest resulting from overdue payments; penalties; lease termination fees; and charges resulting from mileage, overdue payments or excess wear and tear. The actual cash value of the "auto" and the amount owed on your lease shall be based on the time of the "loss."

E. Theft Extension

The coverage provided under SECTION **III** - PHYSICAL DAMAGE COVERAGE for transportation expenses incurred by you because of a total theft of a covered "auto" of the private passenger type is increased to $50 per day and to a maximum of $1,000.

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F. Window Glass Breakage Deductible Waiver

For "loss" covered under SECTION **III** - PHYSICAL DAMAGE COVERAGE, the Deductible provision does not apply to window glass breakage if the damaged window glass is repaired instead of replaced.

G. Malfunction Extension for Airbags

The following provision is added to the Exclusion for wear and tear, freezing, mechanical or electrical breakdown under SECTION **III** - PHYSICAL DAMAGE COVERAGE:

But mechanical or electrical breakdown does not include accidental inflation of an airbag.

H. Multiple Deductibles

1. In the event of any occurrence which results in a loss or "loss" we cover under more than one Coverage, Coverage Form, or Coverage Part, the deductibles shall apply as described in **2., 3.** or **4.** below.

2. **a.** If all involved deductibles are equal in amount, that amount will apply only once for all loss or "loss" from each occurrence.

b. Loss or "loss" from each occurrence under all involved coverages will be accumulated to make up that deductible amount.

3. If involved deductibles for different coverages are of different amounts, we will use the method described in **a.** or **b.** of this item **3.** which results in the higher total payment to you.

a. We will apply each deductible to the loss or "loss" for the coverage to which it applies; or

b. We will add the amount of loss or "loss" from all involved coverages and subtract from the total the larger or largest applicable deductible.

4. This deductible provision does not apply to loss or "loss" caused by flood, windstorm or hail.

I. Bodily Injury Redefined

It is agreed and understood that the definition of "bodily injury" (SECTION **V**) includes mental anguish resulting from "bodily injury," sickness or disease to the person who sustained such "bodily injury," sickness or disease.

J. Unintentional Failure to Disclose Hazards

Failure of the insured to disclose all hazards existing as of the inception date of the Coverage Part shall not invalidate the insurance afforded by this Coverage Part if such failure or omission is not intentional.

K. Broadened Cancellation

It is agreed that we may cancel or nonrenew this Coverage Part by mailing or delivering to the first Named Insured written notice of cancellation or nonrenewal at least sixty (60) days before the effective date of cancellation.

This provision does not apply if the policy is cancelled for nonpayment of premium.

If these provisions conflict with any state law or regulation governing the cancellation/nonrenewal of this Coverage Part, then such law or regulation shall prevail and this Coverage Part is amended to conform with such law or regulation.

L. Broadened Named Insured

It is agreed that the Named Insured shown in the Declarations includes any subsidiary corporation, firm, or organization of a similar business nature which is newly acquired or formed, and over which you maintain ownership or majority interest, if there is no other similar insurance available to that organization. However, coverage does not apply to "bodily injury," "property damage" or "loss" that occurred before you acquired or formed the organization.

No person or organization is an "insured" with respect to the conduct of any current or past partnership or joint venture that is not shown as a Named Insured in the Declarations.

As used in this extension of coverage, the phrase, "similar business nature" means of a nature which an ordinary person would consider to be closely related to your business.

M. Notice of Accident, Claim, Suit or Loss

It is agreed that failure by any agent, servant, or employee (except an executive officer, or individual designated by an executive officer to give such notice) of the "insured" to notify us of any "accident," claim, "suit," or "loss" of which such person has knowledge shall not invalidate the insurance afforded by this Coverage Part as respects the Named Insured.

N. Hired Auto Changes

Coverage territory is amended to be anywhere in the world for a "suit":

1. Involving a covered "auto" that is leased, hired, rented or borrowed by the Named Insured; and

2. Brought against an "insured" for damages to which this insurance applies;

when such "suit" is brought in:

a. The United States of America;

b. The territories and possessions of the United States of America;

c. Puerto Rico; or

d. Canada.

O. Theft Expenses

Under the Loss Payment - Physical Damage Coverage Loss Condition (SECTION **IV**), regardless of the option we select, it is agreed and understood that in the event of a theft of a covered "auto," we will pay those expenses incurred for the return of the covered "auto" to the Named Insured.

P. Employees as Insureds

The following is added to the LIABILITY COVERAGE WHO IS AN INSURED provision:

Any employee of yours is an "insured" while using a covered "auto" you don't own, hire or borrow in your business or your personal affairs.

Q. Towing and Labor

Under SECTION **III** - PHYSICAL DAMAGE COVERAGE, Towing is replaced by the following:

Towing and Labor

We will pay up to the following limits for towing and labor costs incurred each time a covered "auto" is disabled:

a. $100 for a covered "auto" rated and classified as a private passenger vehicle.

b. $150 for a covered "auto" rated and classified as a light, medium, heavy or extra-heavy truck.

However, the labor must be performed at the place of disablement.

R. Personal Effects

The following is added to SECTION **III** - PHYSICAL DAMAGE COVERAGE:

Personal Effects

If you carry Comprehensive Coverage for the stolen covered "auto", we will pay up to $750 for personal effects stolen with the auto.

This insurance is excess over any other collectible insurance and no deductible applies.

S. Waiver of Subrogation

The Transfer of Rights of Recovery Against Others To Us Loss Condition is replaced by the following:

If the insured has rights to recover all or part of any payment we have made under this policy, those rights are transferred to us. The insured must do nothing after loss to impair them. At our request, the insured will bring suit or transfer those rights to us and help us enforce them.

We waive any right of recovery we may have under such a transfer of rights against any person or organization holding a waiver under a written contract with the insured if such contract was executed prior to the loss which generated such right of recovery.

T. Additional Insured - By Contract, Agreement Or Permit

Under SECTION **II** - LIABILITY COVERAGE, the following is added to Who Is An Insured:

Any person or organization with whom you have entered into a written contract, agreement or permit requiring you to provide insurance such as is afforded by this Business Auto Coverage Form is an "insured" for Liability Coverage, but only to the extent that such person or organization qualifies as an "insured" under the Who Is An Insured Provision.

U. Rental Reimbursement

1. We will reimburse you for reasonable costs you incur for the rental of a substitute "auto" that temporarily replaces a covered "auto" described in the Declarations while such "auto" is being repaired due to a "loss" covered under Comprehensive Coverage, Specified Cause of Loss Coverage or Collision Coverage.

2. We will pay the lesser of:

a. The amount of actual and necessary rental costs that you incur; or

b. A maximum of $5,000 for each "loss."

3. The Deductible provision does not apply to this coverage.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ADDITIONAL INSUREDS - PRIMARY AND NON-CONTRIBUTORY INSURANCE

This endorsement modifies insurance provided under the following:

COMMERCIAL LIABILITY UMBRELLA COVERAGE FORM

SCHEDULE*

Specified entities who are additional insureds under this Coverage Part, and who meet the requirements of **5. a. (1)** and **(2)** below:	Leon D. DeMatteis Construction Corp. 820 Elmont Road Elmont, NY 11003
☐	If this box is checked, all entities who are Additional Insureds under this Coverage Part, and who meet the requirements of **5. a. (1)** and **(2)** below, are considered to be scheduled on this endorsement.

*Information required to complete this Schedule, if not shown above, will be shown in the Declarations.

I. The provisions of this endorsement apply only to the entities shown in the Schedule above. For all other entities, Paragraph **5.** of Section **IV - Conditions** continues to apply. All other relevant provisions of CU 00 01 continue to apply to all additional insureds under this Coverage Part.

II. Under **Section IV - Conditions**, Paragraph **5. Other Insurance** is replaced by the following:

5. Other Insurance

a. This insurance is excess over, and shall not contribute with any of the other insurance, whether primary, excess, contingent or on any other basis. This condition will not apply to other insurance specifically written as excess over this Coverage Part.

This condition will also not apply to other insurance available to an additional insured under this coverage part provided that:

(1) The additional insured is a Named Insured under such other insurance; and

(2) You have agreed in writing in a contract or agreement with the additional insured described in paragraph **(1)** above that this insurance would not seek contribution with any other insurance available to that additional insured.

When this insurance is excess, we will have no duty under Coverages A or **B** to defend the insured against any"suit" if any other insurer has a duty to defend the insured against that "suit". If no other insurer defends, we will undertake to do so, but we will be entitled to the insured's rights against all those other insurers.

b. When this insurance is excess over other insurance, we will pay only our share of the "ultimate net loss" that exceeds the sum of:

(1) The total amount that all such other insurance would pay for the loss in the absence of this insurance; and

(2) The total of all deductible and self-insured amounts under all that other insurance.

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POLICY NUMBER: CULP5415165

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

POLICY CHANGES/EXTENSION SCHEDULE

Policy Change Number _____

This Endorsement forms a part of the policy numbered below:

Policy Number	Policy Changes Effective	Company

Term Yrs.	From	To	☐ Subject to Audit	☐ Not Subject to Audit

Named Insured and Mailing Address	Producer
	Producer No.

IT IS AGREED THAT for any box in Part A marked X, the policy is amended as stated in Part B.

PART A.

☐ NAME OF INSURED	☐ DELETING ENDORSEMENT(S)	☐ AMENDING PREMIUM
☐ ADDRESS OF INSURED	☐ ADDING A CLASSIFICATION	☐ REVISE SCHEDULE OF UNDERLYING INSURANCE
☐ ADDING LOCATION	☐ DELETING A CLASSIFICATION	☐ AMENDING RATES
☐ DELETING LOCATION	☐ CHANGING A CLASSIFICATION	☐ AMENDING MINIMUM PREMIUM
☐ CHANGING LOCATION	☐ ADDING/DELETING LOSS PAYEE	☐ AMENDING LIMIT(S) OF LIABILITY
☐ CHANGING POLICY PERIOD	☐ ADDING/DELETING MORTGAGEE	☐ ADDING INSURED
☒ ADDING ENDORSEMENT(S)	☐ AMENDING PREMIUM BASIS/PROTECTION CLASS	

PART B.

FORM 8UMC159 PRIMARY AND NON-CONTRIBUTORY WILL READ AS FOLLOWS:

586 River Ave., LLC, c/o Success Academy, 95 Pine Street, Floor 6, New York, NY 10005; Success Academy Charter School, Inc., 95 Pine Street, Floor 6, New York, NY 10005; Success Academy Charter Schools-NYC, 95 Pine Street, Floor 6, New York, NY 10005; Leon D. DeMatteis Construction Corp., 820 Elmont Road, Elmont, NY 11003; Leon D. DeMatteis Construction Group. (GC), DBI Projects LLC (Owners Rep), 1261 Broadway, Floor 9, New York, NY 10001; Bronx Parking Development Company, LLC, and New York City Industrial Development Agency ("NYCIDA"), New York City Economic Development Corporation, The City of New York, New York State Urban Development Corporation d/b/a Empire State Development Corporation, the Bond Trustee under that certain Indenture of Trust dated December 1, 2007, between NYCIDA and said Bond Trustee, Community Initiatives Development Corporation, Yankee Stadium LLC, and New York Yankees Stadium Partnership (collectively), c/o Bronx Parking Development Company, LLC, 930 River Avenue, Bronx, New York 10451; project Lenders of record and each of their respective assigns and the respective parent, subsidiary and affiliated companies and parents, directors, officers, employees, agents and representatives

Project: LG74 - Project - Success Academy - DeMatteis - 580 / 586 River Avenue, AKA 101 East 150th Street, Bronx, NY 10451. River Avenue, Block #2354, Lot 20, Bronx, NY 10451 (Adjacent Lot).

PREMIUM ADJUSTMENT

Previous	Increase	Decrease	New	PREMIUM
Total Policy Premium $	$	$	Total Policy Premium $	Due at Policy Change Effective Date ☐ Additional ☐ Return
Total Installment Premium $	$	$	Total Installment Premium $	$

8-E-1613 Ed. 4-89

Authorized Representative Signature

POLICY NUMBER:

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

POLICY CHANGES - CONTINUED

Policy Change Number _____

PART B. CONTINUED

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ADDITIONAL INSURED – OWNERS, LESSEES OR CONTRACTORS – AUTOMATIC STATUS FOR OTHER PARTIES WHEN REQUIRED IN WRITTEN CONSTRUCTION AGREEMENT

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

A. Section II – Who Is An Insured is amended to include as an additional insured:

1. Any person or organization for whom you are performing operations when you and such person or organization have agreed in writing in a contract or agreement that such person or organization be added as an additional insured on your policy; and

2. Any other person or organization you are required to add as an additional insured under the contract or agreement described in Paragraph **1.** above.

Such person(s) or organization(s) is an additional insured only with respect to liability for "bodily injury", "property damage" or "personal and advertising injury" caused, in whole or in part, by:

a. Your acts or omissions; or

b. The acts or omissions of those acting on your behalf;

in the performance of your ongoing operations for the additional insured described in Paragraph **1.** or **2.** above.

However, the insurance afforded to such additional insured described above:

a. Only applies to the extent permitted by law; and

b. Will not be broader than that which you are required by the contract or agreement to provide for such additional insured.

A person's or organization's status as an additional insured under this endorsement ends when your operations for the person or organization described in Paragraph **1.** above are completed.

B. With respect to the insurance afforded to these additional insureds, the following additional exclusions apply:

This insurance does not apply to:

1. "Bodily injury", "property damage" or "personal and advertising injury" arising out of the rendering of, or the failure to render, any professional architectural, engineering or surveying services, including:

a. The preparing, approving, or failing to prepare or approve, maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications; or

b. Supervisory, inspection, architectural or engineering activities.

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the "occurrence" which caused the "bodily injury" or "property damage", or the offense which caused the "personal and advertising injury", involved the rendering of, or the failure to render, any professional architectural, engineering or surveying services.

2. "Bodily injury" or "property damage" occurring after:

a. All work, including materials, parts or equipment furnished in connection with such work, on the project (other than service, maintenance or repairs) to be performed by or on behalf of the additional insured(s) at the location of the covered operations has been completed; or

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b. That portion of "your work" out of which the injury or damage arises has been put to its intended use by any person or organization other than another contractor or subcontractor engaged in performing operations for a principal as a part of the same project.

C. With respect to the insurance afforded to these additional insureds, the following is added to **Section III – Limits Of Insurance:**

The most we will pay on behalf of the additional insured is the amount of insurance:

1. Required by the contract or agreement described in Paragraph **A.1.;** or

2. Available under the applicable limits of insurance;

whichever is less.

This endorsement shall not increase the applicable limits of insurance.

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THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ADDITIONAL INSURED – OWNERS, LESSEES OR CONTRACTORS – AUTOMATIC STATUS FOR OTHER PARTIES WHEN REQUIRED IN WRITTEN CONSTRUCTION AGREEMENT (COMPLETED OPERATIONS)

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

A. **Section II – Who Is An Insured** is amended to include as an additional insured:

1. Any person or organization for whom you have performed operations when you and such person or organization have agreed in writing in a contract or agreement that such person or organization be added as an additional insured on your policy; and

2. Any other person or organization you are required to add as an additional insured under the contract or agreement described in Paragraph **1.** above.

Such person(s) or organization(s) is an additional insured only with respect to liability for "bodily injury" or "property damage" caused, in whole or in part, by "your work" performed for the additional insured described in Paragraph **1.** or **2.** above and included in the "products-completed operations hazard".

However, the insurance afforded to such additional insured described above:

a. Only applies to the extent permitted by law; and

b. Will not be broader than that which you are required by the contract or agreement to provide for such additional insured.

B. With respect to the insurance afforded to these additional insureds, the following additional exclusion applies:

This insurance does not apply to:

"Bodily injury" or "property damage" arising out of the rendering of, or the failure to render, any professional architectural, engineering or surveying services, including:

1. The preparing, approving, or failing to prepare or approve, maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications; or

2. Supervisory, inspection, architectural or engineering activities.

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the "occurrence" which caused the "bodily injury" or "property damage" involved the rendering of, or the failure to render, any professional architectural, engineering or surveying services.

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C. With respect to the insurance afforded to these additional insureds, the following is added to **Section III – Limits Of Insurance:**

The most we will pay on behalf of the additional insured is the amount of insurance:

1. Required by the contract or agreement described in Paragraph **A.1.;** or

2. Available under the applicable limits of insurance;

whichever is less.

This endorsement shall not increase the applicable limits of insurance.

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THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

PRIMARY AND NONCONTRIBUTORY – OTHER INSURANCE CONDITION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
LIQUOR LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

The following is added to the **Other Insurance** Condition and supersedes any provision to the contrary:

Primary And Noncontributory Insurance

This insurance is primary to and will not seek contribution from any other insurance available to an additional insured under your policy provided that:

(1) The additional insured is a Named Insured under such other insurance; and

(2) You have agreed in writing in a contract or agreement that this insurance would be primary and would not seek contribution from any other insurance available to the additional insured.

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THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

WAIVER OF TRANSFER OF RIGHTS OF RECOVERY AGAINST OTHERS TO US (WAIVER OF SUBROGATION)

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
ELECTRONIC DATA LIABILITY COVERAGE PART
LIQUOR LIABILITY COVERAGE PART
POLLUTION LIABILITY COVERAGE PART DESIGNATED SITES
POLLUTION LIABILITY LIMITED COVERAGE PART DESIGNATED SITES
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART
RAILROAD PROTECTIVE LIABILITY COVERAGE PART
UNDERGROUND STORAGE TANK POLICY DESIGNATED TANKS

SCHEDULE

Name Of Person(s) Or Organization(s):
Any person or organization you have agreed to waive any right of recovery against in a written contract or agreement executed prior to the loss or occurrence.
Information required to complete this Schedule, if not shown above, will be shown in the Declarations.

The following is added to Paragraph **8. Transfer Of Rights Of Recovery Against Others To Us** of **Section IV – Conditions:**

We waive any right of recovery against the person(s) or organization(s) shown in the Schedule above because of payments we make under this Coverage Part. Such waiver by us applies only to the extent that the insured has waived its right of recovery against such person(s) or organization(s) prior to loss. This endorsement applies only to the person(s) or organization(s) shown in the Schedule above.

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CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YY)

PRODUCER		THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW.
	YOUR INSURANCE COMPANY NAME ADDRESS TEL & FAX NUMBER HERE	
INSURED		INSURERS AFFORDING COVERAGE
	YOUR COMPANY NAME ADDRESS HERE	INSURER A:
		INSURER B:
		INSURER C:
		INSURER D:

COVERAGES

THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES, AGGREGATE LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	POLICY NUMBER	POLICY EFFECTIVE DATE (MM/DD/YY)	POLICY EXPIRATION DATE (MM/DD/YY)	LIMITS	
A	GENERAL LIABILITY [x] COMMERCIAL GENERAL LIABILITY [ ] CLAIMS MADE [X] OCCUR [X] XCU (Coverage included) GEN'L AGGREGATE LIMIT APPLIES PER: [ ] POLICY [X] PRO-JECT [ ] LOC	12345XYZ	DATE (MM/DD/YY)	DATE (MM/DD/YY)	EACH OCCURRENCE	$2,000,000
					FIRE DAMAGE (Any one Fire)	$50,000
					MED EXP (Any one person)	$10,000
					PERSONAL & ADV INJURY	$2,000,000
					GENERAL AGGREGATE	$4,000,000
					PRODUCTS –COM/OP AGG	$4,000,000
A	AUTOMOBILE LIABILITY [X] ANY AUTO [X] ALL OWNED AUTOS [ ] SCHEDULED AUTOS [X] HIRED AUTOS [X] NON-OWNED AUTOS	0987XYZ	DATE (MM/DD/YY)	DATE (MM/DD/YY)	COMBINED SINGLE LIMIT	$1,000,000
					BODILY INJURY (Per Person)	
					BODILY INJURY (Per Accident)	
					PROPERTY DAMAGE (Per Accident)	
	GARAGE LIABILITY [ ] ANY AUTO				AUTO ONLY – EA ACCIDENT	
					OTHER THAN EA. ACC	
					AUTO ONLY: AGG	
C	EXCESS LIABILITY [X] OCCUR [ ] CLAIMS MADE [ ] DEDUCTIBLE [X] RETENTION	12345XYZ	DATE (MM/DD/YY)	DATE (MM/DD/YY)	EACH OCCURRENCE	$5,000,000
					AGGREGATE	$5,000,000
						$10,000
B	WORKERS COMPENSATION AND EMPLOYER'S LIABILITY	12358L	DATE (MM/DD/YY)	DATE (MM/DD/YY)	[X] WC STATU-TORY LIMITS [ ] OTH-ER	
					E.L. EACH ACCIDENT	$1,000,000
					E.L. DISEASE – EA. EMPLOYEE	$1,000,000
					E.L. DISEASE – POLICY LIMIT	$1,000,000
D	OTHER					

SAMPLE

FOR INFORMATION PURPOSES ONLY.

Please also note: Should this subcontractor consider assigning any portion of the work included in this contract to a sub-subcontractor ample notice must be provided and written consent from the contractor may be required. Should approval be granted then all terms and conditions of the contract will apply to the sub-subcontractor including evidence of satisfactory insurance. Failure to comply with these conditions may be grounds for termination or voiding the contract as delineated in the terms and conditions.

DESCRIPTION OF OPERATIONS/VEHICLES/EXCLUSIONS ADDED BY ENDORSEMENT/SPECIAL PROVISIONS

RE: **VRH Job #_____ (Insert Job#)** – With respect to GL, Auto, Umbrella/Excess **Insert the owner's Name, Architect Name**, VRH Construction Corp. and any others required by the contract documents shall be named as additional insureds. SUBCONTRACTOR'S INSURANCE IS PRIMARY OVER VRH'S INSURANCE WHICH IS NON-CONTRIBUTORY. UMBRELLA FOLLOWS FORM OVER PRIMARY PER OCCURRENCE AND IN THE AGGREGATE WHERE APPLICABLE INCLUDING THE PER PROJECT ENDORSEMENT.

CERTIFICATE HOLDER | x | ADDITIONAL INSURED; INSURER LETTER ___Y___ | CANCELLATION

VRH CONSTRUCTION CORP.
ATTN: PROJADMIN@VRHCORP.COM
320 GRAND AVENUE
ENGLEWOOD, NJ 07631

SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, THE ISSUING COMPANY WILL ENDEAVOR TO MAIL 30 DAYS WRITTEN NOTICE TO THE CERTIFICATE HOLDER NAMED TO THE LEFT, BUT FAILURE TO MAIL SUCH NOTICE SHALL IMPOSE NO OBLIGATION OR LIABILITY OF ANY KIND UPON THE COMPANY, ITS AGENTS OR REPRESENTATIVES.

AUTHORIZED REPRESENTATIVE

AGENT'S SIGNATURE HERE